

What Is “the Constitution”? (and Other Fundamental Questions)

MICHAEL J. PERRY

Several of the most divisive *moral* conflicts that have beset us Americans in the period since the end of World War II have been transmuted into *constitutional* conflicts – conflicts about what the Constitution of the United States forbids – and resolved as such. The most prominent instances include the conflicts over racial segregation, affirmative action, sex-based discrimination, homosexuality, abortion, and physician-assisted suicide, each of which has been resolved – at least in part, and at least for a time – on the basis of a claim about what the Fourteenth Amendment forbids. Which of the conflicts, if any, understood as constitutional conflicts, have been resolved as they should have been resolved – that is, which have been resolved on the basis of *the Constitution* as they should have been resolved? If one wants, as I do, to pursue that inquiry, one must first answer three questions: What is “the Constitution”? What does it mean to interpret the Constitution? Is the Supreme Court supreme in interpreting the Constitution? Although this chapter is, then, preparatory, the questions I address here – connected questions – are fundamental.

I. What Is “the Constitution”?

A. *Herein of the Constitution₁ and the Constitution₂*

The referent of the phrase “the Constitution of the United States” is sometimes the document – the text – called the Constitution of the United States. But the referent is sometimes – indeed, often – the norms that constitute “the supreme Law of the Land.” (Article VI of the Constitution declares, “This Constitution . . . shall be the supreme Law of the Land. . . .”) That there is no disagreement about what sentences the Constitution in the first sense (the Constitution₁) contains¹ does not mean that there is no disagreement about what norms the Constitution in the second sense (the Constitution₂) consists of. The Constitution₁ (the document called the Constitution) is not identical to the Constitution₂ (the norms that constitute “the supreme Law”).

What is the Constitution₂ – what norms does it consist of? The Preamble to the Constitution (the Constitution₁) declares, “We the people of the United States . . . do ordain and establish this Constitution for the United States of America.”² In American constitutional culture, few if any persons – even, remarkably, few if any constitutional theorists – disagree that the norms the Constitution₂ consists of include at least some directives issued by – that is, some norms “ordained and established” by – “We the people.” More to the point, few disagree that the Constitution₂ consists of some such norms partly because the norms were “ordained and established” by “We the people.”³ It is now a convention – an axiom – of American constitutional culture that “We the people of the United States” not only “do ordain and establish this Constitution for the United States of America” but *may* ordain and establish it. This is not to say that *only* “We the people” may establish norms as constitutional. I will say more about that later.⁴

What directives have “We the people” issued, what norms have they established? When “We the people,” through their representatives, put words into the Constitution₁, they do so for the purpose of issuing – and, in that sense, establishing – one or more constitutional directives. The Constitution₁, in each and all of its various parts, is the yield of political acts of a certain sort: acts intended to establish not merely particular configurations of words but, ultimately, particular norms, namely, the norms that “We the people” understood – or would have understood, had they been engaged, had they been paying attention – the particular configurations of words to communicate. Does anyone really believe that were *we* to amend the Constitution₁ in our day, it might be a political act of a different sort: an act intended to establish not, ultimately, a particular norm but merely a particular configuration of words? If not, why would anyone believe that when *they* amended the Constitution₁ in their day, they acted to establish merely a particular configuration of words? Establishing, in a political or legal document, a norm to govern the future – unlike establishing, in such a document, merely a particular configuration of words – is a recognizably human act. “[I]t is hard to think of any recommendation for a regime of law created by the ‘interpretation’ of disembodied words that have been methodically severed from the acts of mind that produced them.”⁵ Therefore, the norm (or norms) that “We the people” established, in putting a particular configuration of words into the Constitution₁, is the norm they understood (or would have understood) their words to communicate. They did not establish a norm they would not have understood their words to communicate. In what sense would “We the people of the United States . . . ordain and establish this Constitution for the United States of America” if the norm they are deemed to have established is one they would not have understood their words to communicate?⁶

B. Why Bow to Old Constitutional Directives? And Why Issue New Ones?

I said that few if any persons disagree that the norms the Constitution (the Constitution₂) consists of include some directives issued by "We the people of the United States." (From here on, I will use the subscript only occasionally, for emphasis. It should be clear from the context whether I am referring to the Constitution as law, as a set of legal norms [the Constitution₂], or simply as a text, a statement [the Constitution₁].) The "people of the United States" who did "ordain and establish" the Constitution in 1787–9 – and the Bill of Rights in 1789–91 – are long dead. So, too, are the people who amended the Constitution in the aftermath of the Civil War. (They amended the Constitution₁ so as to amend the Constitution₂.) Why, then, should *we*, the people of the United States *now living*, accept constitutional directives issued by persons long dead as our "supreme Law of the Land"?⁷ Some of the directives of which the Constitution consists, including some of the oldest ones, are directives that we, the people of the United States now living, should want to be a part of our constitution if they were not a part of it already. In the view of some of us, however, not every directive that is a part of our constitution should be a part of it.⁸ Why should those of us who believe that a directive should not be a part of our constitution bow to the directive – that is, bow to it unless and until we succeed in disestablishing the directive in a constitutionally ordained way? Put another way, why should we follow the convention established by the directive? Why shouldn't we follow a different, competing convention – one not established by the Constitution but, nonetheless, more to our liking?

We might try to change the existing convention by amending the Constitution in a constitutionally ordained way – for example, in the way ordained by Article V.⁹ But to pursue that strategy is to follow a convention established by the Constitution. The question at hand, however, is whether we should follow a convention not established by the Constitution that competes with a constitutionally established convention. Why should we do *that*? Why should those of us who believe that a directive should not be a part of our constitution bow to the directive unless/until it is disestablished in a constitutionally ordained way? Why shouldn't we (or our representatives) try to disestablish the directive in a way that is not constitutionally ordained? (In what way that is not constitutionally ordained?) Indeed, why shouldn't we try to establish a new constitutional directive in a way that is not constitutionally ordained?

The most basic reason for bowing to a constitutional directive, unless/until it is disestablished in a constitutionally ordained way, is practical.

Contracts are generally backed by external sanctions; constitutions are more nearly backed by default, by the difficulty of reCOORDINATING on an alternative arrange-

ment. . . . [O]nce we have settled on a constitutional arrangement, it is not likely to be in the interest of some of us then to try to renege on the arrangement. And this is generally true not because we will be coerced to abide if we choose not to but because we generally cannot do better than to abide. To do better, we would have to carry enough others with us to set up an alternative, and that will typically be too costly to be worth the effort.¹⁰

Trying to disestablish a constitutional directive or to establish a new one in a way that is not constitutionally ordained would be an exemplary instance of “try[ing] to renege on the arrangement.” Because to succeed in that effort “we would have to carry enough others with us to set up an alternative, and that will typically be too costly to be worth the effort,” it is not surprising that there is no significant support – nor, without a severe constitutional crisis, is there ever likely to be such support – for disestablishing or establishing a constitutional directive in an other than constitutionally ordained way. Those of us who believe that an existing directive should not be a part of our constitution usually have no option but to bow to the directive (unless/until it is disestablished in a constitutionally ordained way), because “we generally cannot do better than to [do so].” Similarly, those of us who believe that a directive should be a part of our constitution usually have no option but to bow to the fact that the directive is not a part of our constitution (unless/until it is established in a constitutionally ordained way) because “we generally cannot do better than to [do so].”¹¹ This is not to deny, however, that in truly extraordinary circumstances (e.g., a revolution, a civil war, or a great depression) some of us could disestablish a directive, or could establish one, in an other than constitutionally ordained way.¹² For example, Bruce Ackerman has argued – persuasively, in my view – that the Fourteenth Amendment was neither proposed by Congress nor ratified by the states in full accord with the requirements of Article V.¹³ (Ackerman’s project is not to challenge the constitutional status of the Fourteenth Amendment, but to demonstrate that the ways in which “We the people of the United States . . . do ordain and establish this Constitution for the United States of America” are sometimes different from, and more complex than, those authorized by Article V.) Moreover, it is almost certainly the case that in at least a few instances Supreme Court justices have disestablished a directive, or have established one, or have done both. I will say more about this state of affairs in Subsection C of this section.

We can disestablish a constitutional directive, in a constitutionally ordained way, without establishing (issuing) a new directive in its place. However, some day we might want to establish a constitutional directive (whether or not in place of an existing one). What reasons might we have for wanting to establish the directive as a *constitutional* directive – for wanting to establish it, that is, not, or not merely, by means of an ordinary statute, but by means of a constitutional amendment?

Whereas a statute typically may be revised or repealed by a legislative majority, national constitutions typically require much more than a legislative majority to amend the constitution. According to Article V of the Constitution, for example, "The Congress, whenever two thirds of both Houses shall deem it necessary, shall propose Amendments to this Constitution, or, on the Application of the Legislatures of two thirds of the several States, shall call a Convention for proposing Amendments, which, in either Case, shall be valid to all Intents and Purposes, as Part of this Constitution, when ratified by the Legislatures of three fourths of the several states, or by Conventions in three fourths thereof, as the one or the other Mode of Ratification may be proposed by the Congress. . . ." ¹⁴ For us to establish a directive by means of a constitutional amendment, then, is for us to try to make it especially difficult, both for ourselves at a later time and for our political descendants at a much later time, to disestablish the directive. Opting for the constitutional strategy rather than for, or merely for, the statutory one is to decree that the directive may be disestablished, not by a legislative majority acting through the ordinary politics of legislative revision, but only by a supermajority acting through the extraordinary politics of constitutional amendment. ¹⁵

What reasons might we have for wanting to make it so difficult to disestablish a directive? We might be skeptical about the capacity of our ordinary, majoritarian politics to safeguard the directive adequately, especially during politically stressful times when the directive might be most severely challenged. We might fear that, at some time in the future, we who are so enthusiastic about the directive – for example, a directive expressly limiting the power of government – might lose our political dominance and that those who take our place might be hostile to the directive. We might fear too that even if we hold on to our political dominance, our political representatives, over whom we exert imperfect control, might fail to safeguard the directive adequately. In short, we might distrust – we might lack faith in – our (future) politics.

Not that there aren't other reasons for pursuing the constitutional strategy. For example, a political community might need to establish, or to reestablish, its basic institutions, institutional arrangements, and practices, so that its day-to-day politics might then begin, or begin again, to operate. Or it might want to remove certain issues from the agenda of its ordinary politics because it fears, not that its politics cannot be trusted to resolve the issues, but that a contest about how they should be resolved might tear or even destroy the bonds of community. ¹⁶ Even when a political community has already established its basic institutions, institutional arrangements, and practices, however, and even when it has no reason to fear that a contest about how a certain issue should be resolved might tear, much less destroy, the bonds of community, the community might be skeptical about the capacity of its ordinary, majoritarian politics, especially during stressful times, to safeguard adequately a

directive the community deems important. In a federal political community, like our own, such skepticism might focus, at one time, less on the capacity of the politics of the states to safeguard a directive than on the capacity of the politics of the national government to do so. At another time, it might focus more on the capacity of the politics of the states, or of some of them.

C. What Norms Does the Constitution₂ Consist of?

Again, few if any persons disagree that the norms the Constitution consists of include some directives established by "We the people" (and that it includes some such norms partly because they were "ordained and established" by "We the people"). However, that the Constitution consists of some such norms does not entail that it consists *only* of such norms. As I now explain, few constitutional scholars disagree that the Constitution consists of at least some fundamental norms that were probably never established by "We the people." (Although few scholars disagree that the Constitution consists of at least some such norms, whether one or another norm was established by "We the people" is often a matter of controversy – as is the question whether one or another norm not so established is nonetheless a part of the Constitution.)

Under what circumstances, if any, is it legitimate for the Supreme Court to strike down as unconstitutional a law or other governmental action on the basis of a norm that, in the Court's view, is not part of the Constitution that was "ordained" and "established" by "We the people of the United States" through their political representatives – that is, a norm that no generation of "We the people" understood, or would have understood, themselves to be establishing in putting particular words into the text of the Constitution? In our constitutional culture, it would be extremely difficult to justify such an action. It is widely accepted among us that "We the people of the United States" – not "We the justices of the Supreme Court" – should "ordain and establish" the Constitution of the United States.¹⁷ By what right, then, would the Court impose on a branch of the national government – or even on state government – a norm that in its view no generation of "We the people" had ever established?¹⁸

The issue, however, is rarely so simple. Assume that, a generation or even longer ago, the Supreme Court struck down as unconstitutional a law or other governmental action on the basis of a norm that, in the view of the Court today, is no part of the Constitution ordained and established by "We the people." It doesn't matter, to the inquiry I want to pursue here, whether the past Court based its decision on an honest but mistaken view about what norm the text of a constitutional provision was understood to establish, or on pretense – a lie – about what norm the provision was understood to establish, or on an unreasonable specification of an indeterminate constitutional norm,¹⁹ or even

on a theory of constitutional adjudication according to which the Court may enforce, in the name of the Constitution, norms that no one, past or present, could fairly understand any language in the Constitution to establish. Under what circumstances, if any, should the Court today acquiesce in that old ruling rather than overrule it? Few constitutional scholars insist that the Court should never acquiesce in old constitutional rulings it now believes to have been wrong; the disputed question is when – under what conditions – the Court should do so.²⁰

I don't mean to provide an exhaustive answer here, but I do want to float one suggestion: If, over time, the practice or the premise decreed by the old, wrong (at the time) ruling has become such a fixed and widely affirmed and relied-upon (by us the people of the United States now living)²¹ feature of the life of our political community that the premise (or the practice) is, for us, bedrock, then the premise has achieved a virtual constitutional status;²² it has become a part of our fundamental law – the law that is constitutive of ourselves as a political community of a certain sort.²³ Such a premise ought not now to be overturned by the Court. Even Robert Bork has argued that some mistaken constitutional precedents "have become so embedded in the life of the nation, so accepted by the society, so fundamental to the private and public expectations of individuals and institutions, that the result should not be changed now."²⁴ (Because Article V's processes of constitutional amendment are supermajoritarian, for the Court to overturn such a premise would be for it to empower a minority to impede the reestablishment of the premise as a part of our constitutional law. Perhaps ultimately the minority would fail, but given the reality of so much of our politics – logrolling, sound bites, demagoguery, and so on – one couldn't be sure.) Moreover, after declining to overturn such a premise, the Court should not treat the premise as a sport and refuse to go further.²⁵ By hypothesis, we are talking about a premise that has achieved a virtual constitutional status, that has become a part of our fundamental law. It would be anomalous, therefore, for the Court to refuse to weave the premise into the fabric of the constitutional law that, in its "common law" mode, the Court develops over time.

What premises would satisfy the condition articulated in the preceding paragraph? What premises are constitutional bedrock for us the people of the United States now living – and would remain so even if all of us who pay attention to such things came to be persuaded that no constitutional norm established by "We the people" warranted the premises?

- Consider, for example, the premise that the privileges and immunities – the rights and freedoms – protected against the national government by the Bill of Rights are protected against state government by the Fourteenth Amendment. It has been controversial whether that or any similar premise was, as

the Supreme Court's "incorporation" jurisprudence holds, established by the Fourteenth Amendment. I believe that the premise was established by the Fourteenth Amendment,²⁶ but even if we were to discover tomorrow that it was not – that the generation of "We the people" that made the Fourteenth Amendment a part of the Constitution did not understand the amendment to communicate any such premise – the premise is now constitutional bedrock; no Court would (or should) overturn it.²⁷

- Consider in particular the premise that not only the national government, but state government too, may not establish religion or prohibit the free exercise thereof or abridge the freedom of speech or the freedom of the press. It is at least somewhat controversial whether, even if the Fourteenth Amendment made (i.e., was meant to make) applicable to the states the norms, or some of the norms, made applicable to the national government by the Second through Eighth Amendments of the Bill of Rights, the Fourteenth Amendment made the norms of the First Amendment applicable to the states.²⁸ But even if we were to discover tomorrow that, contrary to what the historical record seems to show²⁹ and to what the Court's rulings have long affirmed, the Fourteenth Amendment did not "incorporate" the First Amendment, thereby making its norms applicable to the states, the premise that First Amendment norms are applicable to the states – that no state may establish religion or prohibit the free exercise thereof or abridge the freedoms of speech and of the press – is constitutional bedrock for us the people of the United States now living; no Court would (or should) overturn it.
- Finally, consider the premise that whatever antidiscrimination norm is applicable to state government under the Fourteenth Amendment is applicable to the national government as well. The Supreme Court has hung this premise on the due-process provision of the Fifth Amendment, which states that "[n]o person shall be . . . deprived of life, liberty, or property, without due process of law. . . ."³⁰ However, it is implausible that the due process provision of the Fifth Amendment – which, unlike the Fourteenth, applies to the national government – was understood by the generation of "We the people" that made the Fifth Amendment a part of the Constitution (the founding generation) to communicate any antidiscrimination norm, much less the same antidiscrimination norm established by a later generation of "We the people" when they made the Fourteenth Amendment a part of the Constitution.³¹ I argue elsewhere that a historically accurate reading of the Ninth Amendment, mediated by a modest judicial strategy for determining what unenumerated rights against the national government are "retained by the people," warrants subjecting the national government to the same antidiscrimination norm to which state government is subject under the Fourteenth Amendment.³² But even if we were to discover tomorrow that no constitutional norm established by "We the people" warrants doing so, the

premise that the same antidiscrimination norm that applies to state government also applies to the national government is now constitutional bedrock and no Court would (or should) overturn it.

Whatever other premises satisfy the condition I have sketched here,³³ the three fundamental premises just listed surely do satisfy it.

I mean the condition articulated here to be a sufficient condition for the Court’s acquiescing in mistaken constitutional precedent, not a necessary condition. I am presently agnostic about whether it should also be a necessary condition.³⁴ It does seem to me that the condition is appropriately stringent. Nonetheless, there would doubtless be self-serving and implausible, even frivolous, claims to the effect that a premise is, for us the people of the United States now living, constitutional bedrock and ought not to be overturned by the Court.³⁵ But that even most such claims would be implausible does not entail that no such claim would be compelling. One might doubt that the premises to which I referred in the preceding paragraph are “mistaken” constitutional precedents. But whether or not they are – and, so, even if they are – mistaken, the premises are, for us the people of the United States now living, constitutional bedrock.

Although, as I have said, the Constitution consists of norms established by “We the people” (and not subsequently disestablished by them) in a constitutionally ordained way, it does not consist only of such norms. Both as a description of our practice and as a prescription for the continuance of the practice, the Constitution also consists of premises that, whether or not any generation of “We the people” meant to establish them in the Constitution, and, so, even if no generation of “We the people” meant to establish them, have become such fixed and widely affirmed and relied-upon (by us the people of the United States now living) features of the life of our political community that they are, for us, constitutional bedrock – premises that have, in that sense, achieved a virtual constitutional status, that have become a part of our fundamental law, the law constitutive of ourselves as a political community of a certain sort. If such a premise is inconsistent with a norm established in the past by “We the people,” the premise has, in our practice, lexical priority.³⁶

II. What Does It Mean to Interpret the Constitution?

A. *Interpreting the Constitution,*

If one wants to argue that a governmental action – for example, a state law – violates the Constitution,² the least controversial basis on which to do so, in American constitutional culture, is a norm established as a part of the Consi-

tution₂ by "We the people." Certainly the least problematic basis on which the Supreme Court can rely in invalidating a governmental action is such a norm. (As I mentioned earlier, it is widely accepted among us that "We the people of the United States" – not "We the justices of the Supreme Court" – should "ordain and establish" the Constitution of the United States.) "We the people," through their representatives, sometimes put words into the Constitution₁ that, even after more than two hundred years, succeed in communicating, without much interpretive inquiry by readers of the words, the norm that "We the people" understood the words to communicate and, through their representatives, meant to establish. Two such provisions are the part of Article I, Section 3, that states that "[t]he Senate of the United States shall be composed of two Senators from each State" and the part of Article II, Section 1, that states that "neither shall any person be eligible to that Office [of President] who shall not have attained to the Age of thirty-five Years." Thus, we may say that the sentence "The Senate of the United States shall be composed of two Senators from each State" is a part of the Constitution₁ and the norm that the Senate of the United States shall be composed of two senators from each state is a part of the Constitution₂. To say (as I did in Section I.A) that the Constitution₁ is not identical to the Constitution₂ is not to say that every provision of the Constitution₁ must undergo a significant interpretive inquiry – that every provision must be decoded or translated – if we are to discern what norm the provision was understood to communicate.

Sometimes, however, constitutional language does not communicate, without significant interpretive inquiry, the norm that "We the people" understood (or would have understood) it to communicate; sometimes a constitutional provision is, if not opaque, at least vague or, especially, ambiguous and so must be clarified. (The unintelligibility of a text is not necessarily either-or; it can be, and often is, a matter of degree.) Concomitantly, sometimes we readers of a constitutional provision can reasonably disagree, even after significant interpretive exertions, about what norm "We the people" understood a provision to communicate. Consider, for example, that part of the First Amendment that forbids government to "prohibit[] the free exercise [of religion]." ³⁷ It is safe to assume that the free-exercise language was not understood to communicate a norm forbidding government to prohibit each and every imaginable religious practice. (One need not concoct frightening hypotheticals about human sacrifice to dramatize the point. One need only point, for example, to the refusal of Christian Science parents to seek readily available lifesaving medical care for their gravely ill child.) ³⁸ What norm, then, was the free-exercise language understood to communicate? The language is ambiguous about what directive "We the people" meant to issue, what norm they meant to establish. Was it a norm forbidding government to engage in prohibitory action that discriminates against religious practice – that is, that

disfavors religious practice *as such*: as religious practice, practice embedded in and expressive of one or more religious beliefs?³⁹ Or was it a broader norm, one that forbids, in addition to prohibitory action that discriminates against religious practice, at least some prohibitory action that, although nondiscriminatory, nonetheless impedes religious practice?⁴⁰ The position of five justices of the Supreme Court, in 1990, was that the free-exercise language represents a norm that forbids only discriminatory action. The position of the remaining four justices – and of the Congress that, in 1993, passed the Religious Freedom Restoration Act and of the president who signed it into law – was that the free-exercise norm also forbids some nondiscriminatory action that impedes religious practice.⁴¹

Consider next Section 1 of the Fourteenth Amendment, which states, among other things, that “[a]ll persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside” and that “[n]o State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States.” We the people of the United States now living cannot discern what norm “We the people” then living understood the privileges-or-immunities language to communicate without strenuous interpretive inquiry, because we cannot know, without such inquiry, what the particular generation of “We the people” who put the language into the Constitution – the generation that had just lived through the Civil War and the abolition of slavery – understood the phrase “the privileges or immunities of citizens of the United States” to mean. We need to pursue a clarification of the language, which, by itself, is ambiguous about what norm they, through their representatives, meant to establish. Does the privileges-or-immunities norm they established protect only the privileges and immunities that persons who are citizens of the United States are due under the law, including the Constitution, of the United States?⁴² Or does it protect not only those privileges and immunities, but also all the privileges and immunities that persons who are citizens of the United States are due under the law of the state “wherein they reside”? Or does it protect, if not all the privileges and immunities citizens are due under the law of their state, at least some of them – and, if so, which ones?⁴³

And whatever privileges and immunities are protected by the privileges-or-immunities norm that “We the people” established, what kind or kinds of state legislation does the privileges-or-immunities norm established by “We the people” protect the protected privileges and immunities from or against: laws that discriminate on a racist basis? laws that discriminate on the basis of race, whether or not the discrimination is “racist”? some other kinds of discriminatory laws, too? (what kinds?) even some kinds of nondiscriminatory laws? (what kinds?)⁴⁴ And who – what class of persons – does the norm protect: just citizens of the United States (all of whom are also citizens of the

state wherein they reside) or all persons? (The very same sentence that contains the privileges-or-immunities language also contains this language: “[N]or shall any State deprive *any person* of life, liberty, or property, without due process of law; nor deny to *any person* within its jurisdiction the equal protection of the laws” [emphasis added].) The language of the privileges-or-immunities provision is undeniably limited to the privileges and immunities *of* such citizens (whatever those privileges and immunities are). But the language does not preclude the possibility that the norm the language was understood to communicate is not limited *to* such citizens. As John Ely has put the point: “ ‘No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States’ *could* mean that only citizens are protected in their privileges or immunities, but it surely doesn’t have to. It could just as easily mean that there is a set of entitlements, ‘the privileges and immunities of citizens of the United States,’ which states are not to deny to anyone. In other words, the reference to citizens may define the class of rights rather than limit the class of beneficiaries.”⁴⁵

Sometimes, therefore, it will be necessary for us readers of the text of a constitutional provision to engage in a difficult historical inquiry into what norm the provision was understood to communicate by the generation of “We the people” that (through its representatives) put the provision into the Constitution. It is simply not true of every constitutional provision, even though it is true of many, that the question of the norm the provision was understood to communicate can usefully be answered by a statement of what the provision says. Referring to Article II, Section 1, of the Constitution, which states that “[n]o person except a natural born Citizen . . . shall be eligible to the Office of President,” John Ely has observed that “[u]nless we know whether ‘natural born’ meant born to American parents on the one hand or born married parents on the other, we don’t know what the ratifiers thought they were ratifying and thus what we should recognize as the constitutional command.”⁴⁶

Interpreting the text of a constitutional provision, in the sense of inquiring what norm “We the people” (probably) understood, or would have understood, the provision to communicate – and therefore what norm they meant to establish – has sometimes been confused with a different inquiry, namely, what the generation of “We the people” that established a constitutional norm would have believed to be the correct way of resolving, on the basis of the norm, a conflict that besets us today, a conflict that implicates the norm.⁴⁷ What they would have believed to be the correct way of resolving our conflict is not irrelevant, because knowing what they would have believed might help us discern better than we otherwise could the precise contours of the norm they (through their representatives) established; in particular, it might help us discern how wide their norm is, or how narrow. What finally matters, however, is not what they would have believed to be the correct way of resolving

(on the basis of their norm) our conflict, but what norm they established. After all, if "We the people" in the past would have believed *X* to be the correct answer, on the basis of a norm they issued, to a conflict that besets us today, they might have been mistaken about the contextual requirements of the norm, just as we today might be mistaken about the contextual requirements of a norm.

Sometimes readers of the text of a constitutional provision will have to mine historical materials that are scant or equivocal or both in their effort to discern what norm the provision was (or would have been) understood to communicate by the generation of "We the people" that (through its representatives) put the provision into the Constitution.⁴⁸ As students of American constitutional law are well aware, readers who pursue such an inquiry, even readers who pursue it altogether dispassionately, might end up disagreeing among themselves – *reasonably* disagreeing – about what norm the provision was understood to communicate. There seems to be ample room, with respect to some parts of the Constitution, for reasonable disagreement about what norms the provisions were understood to communicate.⁴⁹ I return to this point later (Section III.B), in discussing the Supreme Court's role in constitutional adjudication.

Two paragraphs back, I began: "Interpreting the text of a constitutional provision, *in the sense of inquiring what norm "We the people" (probably) understood, or would have understood, the provision to communicate – and therefore what norm they meant to establish.* . . . One can "interpret" the text of a constitutional provision in a different sense of the term, however: One can inquire what norm the provision in question is now taken to represent – or what norm it shall hereafter be taken to represent. The conjunction of two factors makes it virtually inevitable that the Supreme Court will "interpret" some provisions of the Constitution in the second sense of the term rather than in the first sense. First, there is the fact that, as I explained in Section I.C, some premises have achieved the status of constitutional bedrock even if no generation of "We the people" meant to establish them. Second, there is the textualist sensibility of American constitutional culture, which Andrezej Rapaczynski has described:

[J]udges sometimes admit that constitutional interpretation is sensitive to historical evolution and that history adds a "gloss" on the text. But they never admit to deriving the authority for their decisions from outside the constitutional text. . . . Instead, any new result is unfailingly presented as a new and better *interpretation* of the text itself. . . . This behavior of judges is very significant because it expresses their belief that purely noninterpretive [i.e., nontextualist] review would constitute an abuse of their power and undermine the legitimacy of judicial review. In this belief, moreover, they are very likely to be right.⁵⁰

It ought not to be surprising, given the textualist sensibility of American constitutional culture, that even when the Supreme Court believes that a premise that has become constitutional bedrock for us was probably never established by any generation of "We the people," the Court will nonetheless refer the premise to some provision of the Constitution. The Court will impute the premise to some linguistically opportune piece of the constitutional text – to some configuration of words that the Court believes or hopes will bear the imputed meaning – which thereafter is taken by the Court to represent the premise. Consider a prominent example of this phenomenon: Whatever the "original" understanding of the due-process language of the Fifth Amendment, for example – whatever norm(s) the generation of "We the people" that put that language into the Constitution understood the language to communicate or establish – the language is now taken to represent (whatever else it is now taken to represent) a fundamental premise that no one, not even Supreme Court justices, can reasonably believe was any part of the original understanding of the language, namely, that whatever antidiscrimination norm is applicable to state government under the Fourteenth Amendment is applicable to the national government as well.⁵¹

B. *Interpreting (Specifying) the Constitution*₂

I said that interpreting the text of a constitutional provision – in the sense of inquiring what norm the provision was understood to communicate – should not be confused with inquiring what the generation of "We the people" that established a constitutional norm would have believed to be the correct way of resolving, on the basis of the norm, a conflict that besets us today. There is something else that interpreting the text of a constitutional provision should not be confused with: "specifying" (as I call it) a constitutional norm in the context of a conflict in which the norm is implicated but in which it is also indeterminate. Just as the Constitution₁ is not identical to the Constitution₂, so too constitutional interpretation is not identical to constitution₂al interpretation.

Assume that we agree – or, at least, that we accept for the sake of argument – that the relevant constitutional norm is *X*. For present purposes, it suffices to say that *X* is determinate in the context of a conflict that implicates it if persons who agree about both (a) what the relevant facts of the conflict – the "adjudicative" facts – are⁵² and (b) what the other relevant legal norms, if any, are and what the implications of those other norms are for the conflict, cannot *reasonably* disagree with one another about how, given *X*, the conflict should be resolved. Similarly, *X* is indeterminate – more precisely, underdeterminate⁵³ – in the context of a conflict that implicates it if persons who agree about (a) and (b) *can* reasonably disagree with one another about how, given *X*, the conflict should be resolved. (Indeterminacy is not either-or; it is a matter of degree.) That *X* is determinate in the context of one or more con-

flicts does not mean that it is not indeterminate in the context of one or more other conflicts. If *X* is indeterminate in the context of a conflict that implicates it, then *X* must be "specified" in that context.

The process of "specifying," in a particular context, a norm implicated but also indeterminate in the context is the process of deciding what the norm, in conjunction with all the other relevant considerations, should be construed to require in that context. It is the process of "shaping" the norm, of rendering the norm determinate in the context of a conflict in which it is implicated but (until specified) indeterminate. Whereas the process of applying a determinate norm is basically deductive, the process of specifying an indeterminate norm is basically nondeductive. A specification "of a principle for a specific class of cases is not a deduction from it, nor a discovery of some implicit meaning; it is the act of setting a more concrete and categorical requirement in the spirit of the principle, and guided both by a sense of what is practically realizable (or enforceable), and by a recognition of the risk of conflict with other principles or values. . . ." ⁵⁴ The challenge of specifying an indeterminate constitutional norm, then, is the challenge of deciding how best to achieve, how best to "instantiate," in the context of a particular conflict, the political-moral value (or values) at the heart of the norm; ⁵⁵ it is the challenge of discerning what way of achieving that value, what way of embodying it, best reconciles all the various and sometimes competing interests of the political community at stake in the conflict. What Anthony Kronman has said of the process of "judgment" aptly describes the process of specifying an indeterminate norm. Such specification is a species of judgment.

Good judgment, and its opposite, are in fact most clearly revealed in just those situations where the method of deduction is least applicable, where the ambiguities are greatest and the demand for proof most obviously misplaced. To show good judgment in such situations is to do something more than merely apply a general rule with special care and thoroughness, or follow out its consequences to a greater level of detail. Judgment often requires such analytic refinement but does not consist in it alone. That this is so is to be explained by the fact that we are most dependent on our judgment, most in need of *good* judgment, in just those situations that pose genuine dilemmas by forcing us to choose between, or otherwise accommodate, conflicting interests and obligations whose conflict is not itself amenable to resolution by the application of some higher-order rule. It is here that the quality of a person's judgment comes most clearly into view and here, too, that his or her deductive powers alone are least likely to prove adequate to the task. ⁵⁶

Although courts are not the only governmental institutions that face the challenge of specifying indeterminate legal norms, courts do often face the challenge. "[A] court asked to apply a rule must decide in light of information not available to the promulgators of the rule, what the rule should mean in its new setting. That is a creative decision, involving discretion, the weighing of consequences, and, in short, a kind of legislative judgment. . . ." ⁵⁷

The fact of legal indeterminacy – and the need, therefore, for specification – is one thing, its value another: Why might a political community, or its representatives, want to establish an indeterminate norm (a norm indeterminate in a significant number of the contexts that implicate it)? Why not issue only determinate norms? Discussing the matter of rules – in particular, legal rules – H. L. A. Hart emphasized that “a feature of the human predicament . . . that we labour under whenever we seek to regulate, unambiguously and in advance, some sphere of conduct by means of general standards to be used without further official directions on particular occasions . . . is our relative ignorance of fact . . . [and] our relative indeterminacy of aim.”⁵⁸ Given that “feature of the human predicament,” it makes sense that many legal (and other) norms are relatively indeterminate.

If the world in which we live were characterized only by a finite number of features, and these together with all the modes in which they could combine were known to us, then provision could be made in advance for every possibility. We could make rules, the application of which to particular cases never called for a further choice. Everything could be known, and for everything, since it could be known, something could be done and specified in advance by rule. . . . Plainly this world is not our world. . . . This inability to anticipate brings with it a relative indeterminacy of aim.⁵⁹

The point is not that (relatively) determinate norms cannot be achieved.⁶⁰ The point, rather, is that determinacy ought not always to be a goal.⁶¹ To achieve determinacy is sometimes “to secure a measure of certainty or predictability at the cost of blindly prejudging what is to be done in a range of future cases, about whose composition we are ignorant. We shall thus succeed in settling in advance, but also in the dark, issues which can only reasonably be settled when they arise and are identified.”⁶² We who “do ordain and establish this Constitution for the United States of America” have long understood Hart’s point. Some of the norms of which the Constitution consists are “not rules for the passing hour,” as Cardozo put it, “but principles for an expanding future. Insofar as it deviates from that standard, and descends into details and particulars, [a constitution] loses its flexibility, the scope of interpretation contracts, the meaning hardens. While it is true to its function, it maintains its power of adaptation, its suppleness, its play.”⁶³

I now want to return to – and, against the background of what I have said in this subsection, rehearse and amplify – a point I emphasized in the preceding subsection: Interpreting the text of a constitutional provision – in the sense of inquiring what norm the provision is understood to communicate – should not be confused with inquiring what the generation of “We the people” that established a constitutional norm would have believed to be the correct way of resolving, on the basis of the norm, a conflict that besets us today. We may say, using the language of “intention” and speaking of legal texts more broadly,

that trying to discern what norm they who enacted a legal text meant or "intended" the text to communicate – which is presumably the norm that, in enacting the text, they intended to establish – should not be confused with trying to discern how they would have resolved a particular conflict, or wanted it to be resolved, on the basis of the norm they intended to establish. How the enactors would have resolved a particular conflict, or wanted it to be resolved, on the basis of the norm they established is a different question, the answer to which is relevant only to the extent that it sheds light on the answer to the question of the norm they intended their text to communicate.⁶⁴

Now, one might try to deflect this point by asserting that the norm they intended to establish, and the text to communicate, just *is* that each and every particular conflict be resolved *just as they would have resolved it*. Put another way, one might assert that what the enactors intended is that their enactment have just those legal effects that they would have "describe[d] [to be] the enactment's legal effects in each possible circumstance."⁶⁵ (The reference, presumably, is to what they, believing what *they* believed, mistakes included, and valuing what *they* valued, would have described to be the enactment's legal effects in each possible circumstance; if the reference were to what they, believing what *we* believe and valuing what *we* value, would have described to be the enactment's legal effects in each possible circumstance, then "they" would not be they.) In our political-legal culture, however, this is a wildly implausible construal of what those who enact legal texts often understand themselves to be doing (intending); as the statements by Neil MacCormick, Richard Posner, and H. L. A. Hart that I have quoted in this subsection illustrate, it is an implausible construal of what many legal norms are taken to be – even by those who establish the norms.⁶⁶ (This is not to deny that some legal norms – norms that are determinate in virtually every context in which the norms are implicated – can be so described. But, *pace* H. L. A. Hart, it is not plausible to describe all legal norms – least of all, all constitutional norms – that way.) "Lon Fuller, Henry Hart and Albert Sacks, and Reed Dickerson have all argued persuasively that the intended general meaning of statutory language is not reducible to the set of specifically intended applications of that statutory language."⁶⁷ Nor is it reducible to the set of applications of the statutory language that the enactors would have described to be the enactment's legal effects in each possible circumstance. "[L]egislative intent is best understood as the intent to adopt directive language with a particular general meaning and to bring about the consequences flowing from the consistent application of that general meaning in particular circumstances."⁶⁸

None of this is to deny that the norm they intended to establish, and the text to communicate, includes at its core that one or more conflicts be resolved just as they would have resolved them. It is not to deny that a central part of what the enactors intended is that with respect to some cases – "paradigm" or

“exemplary” cases – their enactment have just those legal effects that they would have “describe[d] [to be] the enactment’s legal effects” in those cases. But this is a far cry from saying that the sum total of what the enactors intended is that their enactment have just those legal effects that they would have “describe[d] [to be] the enactment’s legal effects” in each and every possible case that might arise and implicate their enactment. A piece of Hart’s discussion is in point here:

When we are bold enough to frame some general rule of conduct (e.g. a rule that no vehicle may be taken into the park), the language used in this context fixes necessary conditions which anything must satisfy if it is to be within its scope, and certain clear examples of what is certainly within its scope may be present to our minds. They are the paradigm, clear cases (the motor-car, the bus, the motor-cycle); and our aim in legislating is so far determinate because we have made a certain choice. We have initially settled the question that peace and quiet in the park is to be maintained at the cost, at any rate, of the exclusion of these things. On the other hand, until we have put the general aim of peace in the park into conjunction with those cases which we did not, or perhaps could not, initially envisage (perhaps a toy motor-car electrically propelled) our aim is, in this direction, indeterminate. We have not settled, because we have not anticipated, the question which will be raised by the unenvisaged case when it occurs: whether some degree of peace in the park is to be sacrificed to, or defended against, those children whose pleasure or interest it is to use these things. When the unenvisaged case does arise, we confront the issues at stake and can then settle the question by choosing between the competing interests in the way which best satisfies us. In doing so we shall have rendered more determinate our initial aim, and shall incidentally have settled a question as to the meaning, for the purpose of this rule, of a general word.⁶⁹

I don’t want to mount an argument here about how many of the norms of which the Constitution consists are indeterminate in many contexts in which they are implicated. For present purposes, I am content to observe that it is not unreasonable to believe that at least some of our most important constitutional norms are indeterminate in a significant number of the contexts that implicate them. (Recall, in that regard, Cardozo’s observation that many of our constitutional norms are “not rules for the passing hour, but principles for an expanding future.”)⁷⁰ Consider, for example, that part of the First Amendment that forbids government to prohibit “the free exercise of religion.”⁷¹ According to the Congress of the United States, which in 1993 passed the Religious Freedom Restoration Act, and to the president of the United States, who signed it into law, the free-exercise language was meant to communicate, whatever else it was meant to communicate, a norm to this effect: “Government shall not substantially burden a person’s exercise of religion even if the burden results from a rule of general applicability, . . . [unless] application of the burden to the person (1) is in furtherance of a compelling governmental interest and (2) is the least restrictive means of furthering that compelling governmental interest.”⁷² There is sometimes ample room for reasonable dis-

agreement about whether, in a particular context, a governmental interest is “compelling” – about whether, taking into account all the relevant particularities of context, the interest is sufficiently important – and even about whether a state action “is the least restrictive means. . .”

Let the European Court of Human Rights make the point in its own context. Article 10 of the European Convention for the Protection of Human Rights and Fundamental Freedoms provides in relevant part:

1. Everyone has the right to freedom of expression. This right shall include freedom to hold opinions and to receive and impart information and ideas without interference by public authority and regardless of frontiers. . . .

2. The exercise of these freedoms, since it carries with it duties and responsibilities, may be subject to such formalities, conditions, restrictions or penalties as are prescribed by law and are necessary in a democratic society, . . . for the protection of health or morals. . . .⁷³

In a famous case involving a claim that the United Kingdom had violated Article 10 of the European Convention, the European Court of Human Rights stated, in a voice reminiscent of James Bradley Thayer’s:⁷⁴

48. These observations apply, notably, to Article 10 §2. In particular, it is not possible to find in the domestic law of the various Contracting States a uniform European conception of morals. The view taken by their respective laws of the requirements of morals varies from time to time and from place to place, especially in our era which is characterised by rapid and far-reaching evolution of opinions on the subject. By reason of their direct and continuous contact with the vital forces of their countries, State authorities are in principle in a better position than the international judge to give an opinion on the exact content of these requirements as well as on the “necessity” of a “restriction” or “penalty” intended to meet them. . . . [I]t is for the national authorities to make the initial assessment of the reality of the pressing social need implied by the notion of “necessity” in this context.

Consequently, Article 10 §2 leaves to the Contracting States a margin of appreciation. This margin is given both to the domestic legislator (“prescribed by law”) and to the bodies, judicial amongst others, that are called upon to interpret and apply the laws in force. . . .

To say that among different states or countries, or even among persons from the same state or country, there is sometimes ample room for a reasonable difference in judgments about one or more matters that the relevant law makes determinative is not to say that anything goes; it is not to say that every difference in judgments about such matters is necessarily reasonable. Thus, the European Court of Human Rights went on to declare:

49. Nevertheless Article 10 §2 does not give the Contracting States an unlimited power of appreciation. The [European] Court [of Human Rights] is empowered to give the final ruling on whether a “restriction” or “penalty” is reconcilable with freedom of

expression as protected by Article 10. The domestic margin of appreciation thus goes hand in hand with a European supervision. Such supervision concerns both the aim of the measure challenged and its "necessity." . . .⁷⁵

Since 1973, when the Supreme Court decided the abortion cases,⁷⁶ there has been an unending explosion of academic writing both about what it means and, especially, about what it should mean, above all for the Court, to "interpret" the Constitution.⁷⁷ Much of the writing is weakened by its failure to attend to two very different senses of constitutional "interpretation." It is marred by its failure to heed the fundamental distinction between, on the one hand, "interpreting" a constitutional *text*, in the sense of trying to discern what norm the text represents and, on the other, "interpreting" a constitutional *norm*, in the sense of determining what shape to give the norm in the context of a conflict in which the norm is implicated but in which it is also indeterminate. I argued, in Section I.A, that with respect to the Constitution₁, the question "What norm does this provision represent?" is often the question "What norm was this provision understood to communicate by the 'We the people' whose representatives put the provision into the Constitution?" But even if one rejects that argument, the fact remains that there is an important difference between, first, interpreting a *text* in the sense of trying to discern what norm a text represents and, second, interpreting a *norm* in the sense of determining what shape to give an indeterminate norm in the context of a particular conflict.⁷⁸ (Again, interpreting the Constitution₁ should not be confused with interpreting, in the sense of specifying, the Constitution₂.) Note that disagreement about what norm, *X* or *Y*, a provision represents can coexist with agreement about how both *X* and *Y* should be shaped (specified) in the context at hand, and that agreement about what norm a provision represents (*X*) can coexist with disagreement about how *X* should be shaped in the context at hand.

One might try to challenge, in two steps, the distinction on which I am insisting here: first, by identifying my distinction with, or by otherwise assimilating it to, the familiar dichotomy between "understanding" a law and then "applying" the law, now understood, to resolve a case; second, by responding, with Hans-Georg Gadamer, that "[u]nderstanding . . . is always application."⁷⁹ However, the distinction on which I am insisting here is not – nor does it presuppose, entail, or even track – the problematic dichotomy that Gadamer rightly challenged: the distinction between, on the one hand, understanding a legal norm and, on the other, "applying" the norm – in the sense of "bringing it to bear" – in adjudicating a particular conflict. That distinction is not my distinction. Indeed, the second half of my distinction – the act of determining what shape to give an indeterminate norm in the context of a particular conflict – presupposes that the Gadamerian insight is accurate. It presup-

poses that there is no difference between understanding the meaning – the contextual meaning – of a legal norm and “applying” the norm, bringing it to bear, in the case at hand; to do the latter just *is* to determine (to “specify”) the contextual meaning of the norm.

The first half of my distinction – the act of trying to discern what norm a legal text represents – simply recognizes that some legal texts (not all, but some) are initially unintelligible (opaque, vague, ambiguous, etc.), in the sense that it is not initially clear to readers of the text what norm the text represents. (Like indeterminacy, unintelligibility is not either – or but a matter of degree.) If it is not clear what norm a legal text represents, a court (assuming for the moment that a court is the relevant reader of the text) must translate or decode the text: A court must identify, or try to, the norm the text represents. Before the norm that the text represents can be “understood”/“applied” – which, *pace* Gadamer, is one move, not two – the norm that the text represents must be identified. As I explained in Section I.A, it is simply not true of every constitutional provision, even though it is true of many, that the question of the norm that the provision represents can usefully be answered by a repetition of what the text says.⁸⁰

III. Is the Supreme Court Supreme – And, If So, How Deferential Ought It to Be, If Deferential at All – in Interpreting the Constitution?

A. *Is the Supreme Court Supreme?*

Justice Brennan has written that “[t]he genius of the Magna Carta, as well as its longevity, lay partly in its creation of a device for resolving grievances and compelling the Crown to abide by the committee of barons’ decision. Paper promises whose enforcement depends wholly on the promisor’s goodwill have rarely been worth the parchment on which they were inked.”⁸¹ To be as effective as possible, the constitutional strategy for establishing norms must include one or more enforcement mechanisms. (This is especially true with respect to those norms the constitutionalization of which presupposes a realistic skepticism about majoritarian politics.) For us, a principal such mechanism has been the practice of judicial review⁸² – but not because we believe what only the historically uninformed could believe, namely, that the justices of the Supreme Court of the United States, or any of our other judges, are necessarily or invariably better than any other public officials at safeguarding constitutional norms. Judicial review is simply one way, albeit a very important one, of trying to protect constitutional norms when other ways, and other officials, might have failed to do so. Sometimes judicial review itself fails.

One might want to inquire (as I have elsewhere) whether “We the people” ever established the practice of judicial review in a constitutionally ordained way.⁸³ But that is not, for us the people of the United States now living, a live question. Judicial review has been a bedrock feature of our constitutional order almost since the beginning of our country’s history.⁸⁴ Nor is it a live question, for us, whether judicial review is, all things considered, a good idea. It would be startling, to say the least, were we Americans to turn skeptical about the idea of judicial review – an American-born and -bred idea that, in the twentieth century, has been increasingly influential throughout the world.⁸⁵ For us, the live questions about judicial review are about how the power of judicial review should be exercised. To endorse the idea and the practice of judicial review, however, is not necessarily to endorse the doctrine of judicial supremacy.

As I explained in Section II.A, there is ample room for reasonable disagreement about what norms some parts of the Constitution₁ were understood to communicate (e.g., the privileges-or-immunities language of the Fourteenth Amendment). But even if there is little if any room for *reasonable* disagreement about such a matter, there can be disagreement. As I explained in Section II.B, there is ample room for reasonable disagreement about how some of the norms of which the Constitution₂ consists should be specified in some of the contexts that implicate them. But even if there is little if any room for reasonable disagreement about such a matter, there can be disagreement. Both disagreements about what norm a provision of the Constitution₁ was understood to communicate and disagreements about how one of our constitutional norms should be specified in a particular context are disagreements about what the Constitution₂ forbids.

Article III of the Constitution anoints the Supreme Court of the United States as the arbiter of disagreements between itself and any state judiciary about what any national law, including the Constitution, forbids.⁸⁶ As a practical matter, the position of the Supreme Court about what a national law forbids will prevail over any competing position of the legislature or of the governor of any state (as well as over the competing position of the judiciary of any state) as long as the executive branch of the national government is willing to stand behind the ruling of the Supreme Court.⁸⁷ (I am assuming here that, in any such dispute, any state actor – for example, the governor – can be sued in a case that will eventually be decided, even if only on appeal, on the basis of the Supreme Court’s position.) As it happens, however, the Constitution contains no norm anointing any branch of the national government as the arbiter of disagreements between itself and any other branch of the national government about what a national law – including “the supreme law of the Land” – forbids. Contrary to what many citizens might believe – and, indeed, contrary to what some justices of the Supreme Court have seemed to believe⁸⁸

– the Constitution₁ does not state that the Supreme Court of the United States is to be the arbiter of such disagreements, nor does the Constitution₂ contain any norm to that effect.⁸⁹ Of course, a constitution could designate the judicial branch of government (or another branch) as the arbiter of some or all such disagreements, but ours does not do so.

Over time, however, an expectation has emerged, yielding a practice that has what we may call a "quasi-constitutional" status in U.S. politics: In American constitutional culture, the firm expectation is that the legislative and executive branches of the national government will each refrain from doing anything the Supreme Court says the Constitution forbids them to do, and they will each do anything the Court says Constitution requires them to do, even if they disagree with the Court's position about what the Constitution forbids (or requires).⁹⁰ Why has this expectation emerged? Certainly not because we the people of the United States believe that the position of a majority of the justices on the Supreme Court about what norm a constitutional provision should be taken to represent, or about how a constitutional norm should be specified, is necessarily or invariably superior to the position of a majority of the members of Congress or to the position of the president. Rather, this expectation has emerged mainly for two connected reasons.

First, we have come to believe that it is desirable – because less messy and more productive for our political life – that different political institutions and actors not interminably struggle with one another over their different understandings of what the Constitution forbids (or requires), some acting on the basis of one understanding, others on the basis of a competing understanding. Accordingly, we believe that, in general, one institution of government should have the power to settle, as a *practical* matter, disruptive controversies about what the Constitution forbids; one institution should have the power to determine, as a *practical* matter, what the Constitution forbids.⁹¹ (This is not to say that one institution should have the power to determine, as an *intellectual* or *theoretical* matter, what the Constitution forbids. Practical assent – assent in practice or action – is one thing; intellectual assent is something else altogether. That there is, or might be, a need for the former does not entail that there is an equal need, or indeed any need, for the latter.)

Second, we have come to believe – at least, many of us have – that, in general, the Supreme Court is the institution least to be feared and most to be trusted in determining, as a practical matter, the minimum boundaries of what the Constitution forbids.⁹²

The *minimum* boundaries, it bears emphasis, not the maximum. Again, the firm expectation that has emerged is that the legislative and executive branches of the national government will each refrain from doing anything the Supreme Court says the Constitution forbids them to do, even if they disagree with the Court's position about what the Constitution forbids. It is not

inconsistent with this expectation for Congress, in enacting legislation pursuant to its responsibility under Section 5 of the Fourteenth Amendment to enforce the provisions of the amendment, to conclude that some constitutional norm forbids state government to do more than the Court says the norm does, or that some constitutional norm requires state government to do more than the Court says the norm does. Recall, in that regard, that every norm applicable to state government under Section 1 of the Fourteenth Amendment is now deemed applicable to the national government under one or another other constitutional provision. So for Congress to conclude that some norm applicable to state government under the Fourteenth Amendment forbids state government to do more than the Court says the norm does, or that some such norm requires state government to do more than the Court says the norm does, is for Congress to conclude that its own power, too, is more limited than the Court says it is, not less limited. There is certainly much less, if any, reason to fear Congress – much less, if any, reason not to trust it – when the constitutional boundaries it sets on its own power are stricter, larger, than those the Court has set. Given this, and given Congress's clear responsibility under Section 5 of the Fourteenth Amendment to enforce the provisions of the amendment, it might well be the case that Court should defer to – that it should uphold the constitutionality of – the Religious Freedom Restoration Act (RFRA).⁹³ (Significantly, Congress wrote RFRA to apply to the national government no less than to state government.)⁹⁴ In any event, RFRA does not violate what the Court has determined to be the minimum boundaries of what the Constitution forbids. Of course, if the Supreme Court, contrary to the decisions of three lower federal courts (so far),⁹⁵ were not to defer, were it to rule that RFRA is unconstitutional, then the Court would have said what the Constitution forbids Congress to do, namely, enact RFRA, and, given the “firm expectation” stated at the beginning of this paragraph, that would very likely be the end of the matter.

In the period since World War II, we Americans have succeeded in exporting our practice of judicial supremacy to many parts of the world. Several countries now accord their judiciaries similar supremacy in deciding what their constitutions forbid.⁹⁶ Moreover, the European Court of Human Rights is accorded supremacy in deciding what the European Convention for the Protection of Human Rights and Fundamental Freedoms forbids.⁹⁷ The belief that, on balance and in general, a well-functioning judiciary is the least to be feared and the most to be trusted – especially in deciding what the authoritative provisions regarding human rights forbid – is waxing in global influence,⁹⁸ not waning, and it seems unlikely that the belief will relax its grip, at least for long, on American constitutional culture. Nonetheless, the belief is a highly contingent one; we cannot rule out the possibility of a future in which

the belief comes to seem, to a growing number of us, untenable. Indeed, the belief already seems untenable to some of us.⁹⁹

To say that the Supreme Court serves as the arbiter of disputes between itself and one or both of the other branches of the national government about what the Constitution forbids is not to say that the Court should never conclude that the Constitution commits resolution of a conflict about what some provision of the Constitution forbids to a branch of the national government other than itself.¹⁰⁰ Nor is it to say that, as the arbiter of such disputes, the Court (when it does not conclude that the Constitution commits resolution of the conflict to another branch of government) should never defer to another branch's position about what the Constitution forbids. (In the next two subsections, I take up the question of the propriety of deference by the Court to another branch's judgments about what the Constitution forbids.) Moreover, nothing I have said here is meant to deny that, under the Constitution, every citizen of the United States, including every citizen who is an official of the national government or of a state government, may persist in disagreeing, as vigorously as she thinks appropriate, with a constitutional decision of the Supreme Court even long past the point where it is clear that the Court will not soon, if ever, change its mind.

Finally, it bears emphasis that neither Congress nor the president is constitutionally obligated to defer to the Court's constitutional decisions about what the Constitution forbids. The practice of deferring to such decisions is, as I said, merely "quasi-constitutional." It is best understood as a *presumptive* practice – a practice appropriate for circumstances both constitutionally and morally ordinary. In a circumstance neither constitutionally nor morally ordinary, it might be appropriate for Congress or the president (or both) not to defer to the Court. As I said earlier, to endorse the idea and the practice of judicial review is not necessarily to endorse the doctrine of judicial supremacy. When Abraham Lincoln delivered his First Inaugural Address on March 4, 1861, the circumstances were undeniably both constitutionally and morally extraordinary: "[I]f the policy of the government upon vital questions affecting the whole people is to be irrevocably fixed by decisions of the Supreme Court . . . the people will have ceased to be their own rulers, having to that extent practically resigned their Government into the hands of that eminent tribunal."¹⁰¹ Lincoln had in mind, of course, the Supreme Court's infamous decision in *Dred Scott v. Sanford*.¹⁰²

I said that the Court must decide when to defer to another branch's judgment about what the Constitution forbids. Because in a circumstance neither constitutionally nor morally ordinary, it might be appropriate for Congress or the president (or both) not to defer to the Court, Congress and the president must decide when to defer to the Court – although, again, the practice that has

emerged is one of deference, a practice so long-standing and so sensible as to be, in ordinary circumstances, bedrock. (Not that the practice couldn't evolve in the direction of less deference.) As I said, the Constitution could designate the Supreme Court (or another branch) as the arbiter of some or all inter-branch disagreements about what the Constitution forbids. Such a state of affairs would be less ambiguous than the state of affairs that now prevails. But perhaps we are better off that the Constitution₁ does not state and that the Constitution₂ is not to the effect that the Court (or another branch) is to be the arbiter. Perhaps the present, less well defined arrangement – in which the Court must decide when to defer to one or both of the other branches and, as a constitutional matter, it remains open to each of the other branches to decide when extraordinary circumstances warrant its not deferring to the Court – yields constitutional decisions that are generally less divisive and destabilizing than the decisions a different, more hierarchical arrangement might yield. Perhaps.

In circumstances both constitutionally and morally ordinary, the Supreme Court of the United States serves, at least for now, as the arbiter of disagreements between itself and one or both of the other branches of the national government about what the Constitution forbids. Undeniably, this is an awesome responsibility. I said, in the preceding paragraph, that the Court must decide when to defer. How large a role ought the Court to play, or how small – put another way, how active a role ought it to play, or how passive, how deferential – in serving as the arbiter of disagreements between itself and one or both of the other branches about what the Constitution forbids?

B. How Deferential Ought the Court to Be in Interpreting the Constitution₁?

Again, there is ample room for reasonable disagreement about what norms some parts of the Constitution₁ were understood to communicate. How large a role ought the Supreme Court to play, or how small a role, when it is a party to such a disagreement; in particular, ought the Court to play a deferential role? That is, how deferential ought the Court to be in interpreting the Constitution₁?¹⁰³ Assume, for example, that according to a majority of the Court, the text of a particular constitutional provision was probably understood to communicate norm X, but that according to a different view that prevailed in Congress, the provision was probably understood to communicate norm Y. Ought the majority to defer to Congress's view? It is unrealistic to expect the Court to defer to Congress's view if in its opinion that view is not merely wrong but, all things considered, unreasonable. Moreover, an intellectually arrogant or politically willful justice might not be able to discern the distinction between

thinking that Congress's view is wrong and thinking that it is unreasonable. Imagine, however, that in the majority's opinion, Congress's view, though wrong, is not unreasonable. Ought the Court to defer? The twofold point I want to emphasize here is that, first, it is perilous to generalize and, second, many considerations are relevant. In particular:

- How confident is the majority that it is right and Congress, wrong; that is, how close is the majority to thinking that Congress is not merely wrong, but unreasonable?
- How thoroughly has Congress considered the issue? (How has it done so – by means of what processes?) To the extent that Congress has thoroughly considered the issue, the case for the Court deferring is stronger; to the extent that it has not done so, the case is weaker.
- Is Congress's view distorted (and, if so, to what extent) by its interest in avoiding the broader limitation that norm X would place on Congress's power to act? Or, instead, does norm Y place a broader limitation on government's, including Congress's, power to act? If the former, Congress is saying that the Constitution₂ forbids *less* than the Court says it forbids, and the case for the Court deferring is weaker. If the latter, Congress is saying that the Constitution₂ forbids *more* than the Court says it forbids, and the case for judicial deference is stronger. (As I suggested in the preceding section, given Congress's clear responsibility under Section 5 of the Fourteenth Amendment to enforce the provisions of the amendment, and because Congress wrote the Religious Freedom Restoration Act to limit the power not only of state government but of the national government as well – including Congress's own power – the case for the Court deferring to RFRA is, in my view, much stronger than it would otherwise be. If Congress had written RFRA to apply only to state government, the case for the Court deferring to Congress would be weaker.)
- Which norm, X or Y, is more attractive, in the majority's view, as a matter of political morality? (Relatedly, which norm is more attractive, in the majority's view, as a matter of the judicial role that enforcement of the norm would require of the Court?)¹⁰⁴ If X, the case for the Court deferring is, in its view, weaker; if Y, the case is stronger.

C. How Deferential Ought the Court to Be in Interpreting (Specifying) the Constitution₂?

Even if the Constitution contains only a few indeterminate norms – only a few norms indeterminate in many of the contexts that implicate them – this fundamental question remains: How large a role ought the Supreme Court to play, or how small – how active a role, or how passive – in specifying indeter-

minate constitutional norms?¹⁰⁵ In particular, ought the Court to play a primary role or only a secondary, deferential role of the sort recommended by James Bradley Thayer more than a century ago?¹⁰⁶ That is, how deferential ought the Court to be in specifying the Constitution? (Recall here the “margin of appreciation” doctrine developed by the European Court of Human Rights.)¹⁰⁷ Assume, for example, that according to a majority of the Court, the best or optimal specification of a particular constitutional norm is *X* and that, given *X*, a particular national law is unconstitutional. Assume further that according to the view that prevailed in Congress, the appropriate specification of the norm is *Y* and that, given *Y*, the national law is not unconstitutional. Ought the Court to defer to Congress’s view? As before, it is unrealistic to expect the Court to defer to Congress’s view if in its opinion that view is not merely wrong but, all things considered, unreasonable. And as before, an intellectually arrogant or politically willful justice might not be able to discern the distinction between thinking that Congress’s view is wrong and thinking that it is unreasonable.¹⁰⁸ Imagine, however, that in the majority’s opinion, Congress’s view, though wrong, is not unreasonable. Ought the Court to defer? Again, many considerations – similar considerations – are relevant.

- How close is the Court to thinking that Congress is not merely wrong, but unreasonable?
- How thoroughly has Congress considered the issue?
- Is Congress’s view most likely distorted by its interest in avoiding the broader limitation that specification *X* would place on Congress’s power to act?
- Is the norm one that Congress is arguably better positioned to specify than the judicial branch – for example, a norm establishing not a “negative” right to be free of some governmental overreaching (perhaps in conjunction with a liberty to engage in some activity) but a “positive” entitlement “to governmental assistance to meet basic material needs”?¹⁰⁹
- Is the question of which specification, *X* or *Y*, is best or optimal a question that Congress’s political processes can be trusted to handle fairly and well?¹¹⁰ Or is it one that, perhaps because the norm is “unusually vulnerable to majority sentiment,”¹¹¹ the politically independent Court is more likely, all things considered, to handle fairly and well?

Just as it is perilous to generalize about when the Court ought to defer to Congress’s or the president’s view about what norm the text of a particular constitutional provision was understood to establish, it is perilous to generalize about when the Court ought to defer to Congress’s view about the best or optimal specification of an indeterminate constitutional norm.¹¹²

We can pursue much the same inquiry – to much the same conclusion – with respect to a state law and a state legislature. The relevant considerations

are the same, and it is no less perilous to generalize about when the Court ought to defer to a state legislature's (not unreasonable) view, as distinct from Congress's view, about the best or optimal specification of an indeterminate norm.¹¹³

Perilous though the enterprise is, I do want to gesture in the direction of one generalization. In *Democracy and Distrust*,¹¹⁴ John Ely did not address the question of the role the Court ought to play in specifying indeterminate constitutional norms. Ely's concern was mainly with the different question of the unenumerated rights the judiciary – in particular, the Supreme Court – may legitimately enforce as constitutional rights (if any). Nonetheless, Ely's answer is relevant to our question. In 1991, Ely characterized the essential argument of *Democracy and Distrust* as follows: "[P]ublic issues generally should be settled by a majority vote of [sane adults] or their representatives. . . ."¹¹⁵ But, Ely continued, public issues of three sorts are sensibly resolved – resolved as *constitutional* issues – principally by the judiciary:

- (1) the question of whether, "where a majority of such persons [sane adults or their representatives] votes to exclude other such persons from the [political] process or otherwise to dilute their influence on it," it may do so;
- (2) the question of whether, "where such a majority enacts one regulatory regime for itself and another, less favorable one, for one or another minority," it may do so; and
- (3) the question of whether, where such a majority makes a political choice that implicates a "side constraint" with a certain pedigree, the choice violates the side constraint; a side constraint that, because it is "sufficiently important (and vulnerable to majority sentiment)," was designated by a supermajority "in a constitutional document and thereby render[ed] . . . immune to displacement by anything short of a similar supermajority vote in the future."¹¹⁶

Ely then explained, "[P]recisely because of their tenure, courts are the appropriate guardians of at least exceptions (1) and (2)."¹¹⁷ Ely added, with respect to exception (3) – which, unlike exceptions (1) and (2), concerns enumerated rights, not unenumerated ones – that on "the supposition that no right is to be thus designated *unless it is unusually vulnerable to majority sentiment*," courts are the appropriate guardians of exception (3) as well.¹¹⁸ Finally, Ely wrote, "What does not follow from anything said above, or in my opinion from anything sensible said ever, is that judges are also to be given a license to create or 'discover' further rights, not justified by exceptions (1) or (2) nor ever constitutionalized by a supermajority, and protect them as if they had been."¹¹⁹

Whether or not one agrees with Ely's position about the (only) unenumerated rights the Court may enforce (exceptions (1) and (2)), one could agree with his position about the enumerated rights the Court may enforce (except-

tion (3)) and yet insist that if and to the extent that any such right is indeterminate, the Court should play only a secondary role – a Thayerian role – in specifying it. One could say, in that regard, that answering the question of the best or optimal specification of an indeterminate constitutional right – the best or optimal specification, that is, of a constitutional norm establishing and protecting an indeterminate right – requires many “judgment calls” (as Ely has described them),¹²⁰ and that as long as the judgment calls implicit in the challenged governmental action are not unreasonable, the Court should defer to them. Nonetheless, Ely’s argument lends support to the position that as a comparative matter, as an issue in the allocation of competences, the judiciary – not least, the federal judiciary – is institutionally well suited to play the primary role in specifying any right- or liberty-regarding norm it is charged with enforcing if our historical experience suggests that the norm is “unusually vulnerable to majority sentiment.” To settle for our elected representatives, and not the judiciary, playing the primary role in specifying such a norm is probably to settle for many specifications that, even if “not unreasonable” for purposes of Thayer’s minimalist approach to constitutional adjudication, are nonetheless suboptimal: specifications that fail to give the important constitutional value at stake – the value privileged by the norm – its full due.

A word of clarification is in order. My comments here are directed at the situation in which the Court faces a choice between two not unreasonable specifications of a right- or liberty-regarding norm that our history has shown to be “unusually vulnerable to majority sentiment”: the Court’s own, more generous specification of the norm – more generous to the principal beneficiaries of the norm – and another branch’s less generous specification. It is a different situation altogether, of course, if the Court faces a choice between its own, less generous specification of a right- or liberty-regarding norm and another branch’s more generous specification. That the Court should not defer, à la Thayer, to another branch’s less generous specification of such a norm does not entail that it should not defer to another branch’s more generous specification *if the Court concludes that that more generous specification is not unreasonable*. In particular, there might be little if any reason for the Court to insist on a specification of a right- or liberty-regarding norm less generous than the specification that Congress, in exercising its responsibility under Section 5 of the Fourteenth Amendment to enforce the provisions of the amendment, is willing to embrace. Least of all should the Court do so if both of the other two branches of the national government – Congress in enacting a law and the president in signing it – are in agreement in embracing a specification of a right- or liberty-regarding norm more generous than the specification that the Court has embraced or is inclined to embrace.

Of course, that the Supreme Court chooses to exercise the principal responsibility for specifying some indeterminate constitutional norm does not pre-

clude the possibility that in exercising that responsibility the Court will, on occasion, act too timidly or with insufficient sensitivity or vigilance, thereby failing to give the constitutional value at stake its full due. But that possibility does not begin to support the argument that the Court should exercise only a secondary responsibility, that it should pursue only the Thayerian approach to the specification of the norm. Even if in exercising the principal responsibility the Court occasionally acts too timidly – even if usually it acts too timidly – the U.S. political community is no worse off than it would be if the Court were to exercise a secondary responsibility *as a matter of course*, habitually deferring to political judgments that, while arguably reasonable for purposes of Thayer's approach, nonetheless give the constitutional value less than its full due. The Supreme Court's sorry record of failing to take free-exercise claims very seriously comes to mind here.¹²¹ But, as Doug Laycock has emphasized: "Some of the time, judicial review will do some good. Judges did nothing for the Mormons, but they may have saved the Jehovah's Witnesses and the Amish. If judges can save one religious minority a century, I consider that ample justification for judicial review in religious liberty cases."¹²²

For a depressing example of the kind of suboptimal specification the Thayerian approach might well affirm, consider the political judgment to which Thayer's most prominent judicial disciple, Felix Frankfurter, deferred in *West Virginia State Board of Education v. Barnette*,¹²³ in which he, and he alone, dissented from the Supreme Court's decision striking down a public school regulation that compelled students, including Jehovah's Witnesses who conscientiously objected on religious grounds, to salute the American flag and recite the Pledge of Allegiance. It was, Frankfurter insisted, a judgment "upon which men might reasonably differ. . . . And since men may so reasonably differ, I deem it beyond my constitutional power to assert my view of the wisdom of this law against the view of the State of West Virginia."¹²⁴ As Frankfurter's Thayerian performance in *Barnette* illustrates, because legislatures so rarely make political choices about whose constitutionality men and women may *not* reasonably differ, the Thayerian approach to the specification of any constitutional norm effectively marginalizes the norm – virtually to the point of eliminating it – insofar as constitutional adjudication is concerned. It is not obvious, therefore, why one would advocate the Thayerian approach to the specification of a norm unless one thought that the norm should be marginalized.

Now, one might think that some norms should be marginalized because mechanisms other than constitutional adjudication – political as distinct from judicial mechanisms – are adequate, more or less, to the protection of the norms: namely, norms regarding the allocation of power, whether between the national government and the governments of the states¹²⁵ or between the legislative and executive branches of the national government. One might also

think that some right- or liberty-regarding norms are relatively unimportant, or at least inappropriate to a constitution that is to be judicially enforced, and should therefore be marginalized. But it is not obvious why one would want to marginalize any right- or liberty-regarding norm – that is, why one would support the Thayerian approach to the specification of any such norm – that one thought was relatively important, and appropriate to a constitution, unless one concluded that, overall, political mechanisms were somehow adequate to protect the norm. However, our history suggests that such a conclusion is doubtful with respect to at least some right- or liberty-regarding norms.

Jeremy Waldron has argued that judicial review – judicial review in the sense of according the judiciary supremacy in deciding what a constitution forbids – is deeply problematic as a matter of political morality.¹²⁶ The final two paragraphs of Waldron's "right-based critique of constitutional rights" suggest the problem he sees:

If we are going to defend the idea of an entrenched Bill of Rights put effectively beyond revision by anyone other than the judges, we should try and think what we might say to some public-spirited citizen who wishes to launch a campaign or lobby her [representative] on some issue of rights about which she feels strongly and on which she has done her best to arrive at a considered and impartial view. She is not asking to be a dictator; she perfectly accepts that her voice should have no more power than that of anyone else who is prepared to participate in politics. But – like her suffragette forbears – she wants a vote; she wants her voice and her activity to count on matters of high political importance.

In defending a Bill of Rights, we have to imagine ourselves saying to her: "You may write to the newspaper and get up a petition and organize a pressure group to lobby [the legislature]. But even if you succeed, beyond your wildest dreams, and orchestrate the support of a large number of like-minded men and women, and manage to prevail in the legislature, your measure may be challenged and struck down because your view of what rights we have does not accord with the judges' view. When their votes differ from yours, theirs are the votes that will prevail." It is my submission that saying this does not comport with the respect and honor normally accorded to ordinary men and women in the context of a theory of rights.¹²⁷

Waldron's rejection of the idea of "an entrenched Bill of Rights put effectively beyond revision by anyone other than the judges" might not be extreme in the context of, say, English political-legal culture, which has never known such a bill of rights and even now is wary about creating one. But Waldron's position *is* extreme in the context of a political-legal culture like ours, because, even though we do not always agree about what some of its provisions forbid, we generally revere our entrenched Bill of Rights.¹²⁸ (That Waldron's argument is extreme in the context of American political-legal culture does not entail that his argument is not, in that context, thoughtful or important. It is both.) Nonetheless, Waldron's argument can be borrowed to support three

claims that are not extreme in the context of American political-legal culture. (That none of the three claims is extreme does not entail that none of them is controversial.)

- A constitution should contain few if any indeterminate norms.
- The appropriate *practice* of judicial review, in the case of indeterminate constitutional norms, is Thayerian.¹²⁹
- It is a good thing that the legislative and executive branches are not constitutionally obligated to defer to the judicial branch's beliefs about what the Constitution forbids, including its beliefs about the best or optimal specification of an indeterminate constitutional norm.

That Waldron's argument lends support to these three claims does not mean that we should accept the claims. I do accept, partly on the basis of considerations like those Waldron highlights, the first and third claims. At least, I am inclined to agree both that constitution-makers should be cautious about including indeterminate norms in a constitution (which is not to say that they should never do so) and that it is a good thing that Congress and the president are, as I noted in Section III.A, constitutionally free not to defer to the Supreme Court's beliefs about what the Constitution forbids. (This is not to say that the legislative and executive branches should not accord the judiciary supremacy – i.e., *presumptive* supremacy; it is not to deny that, in circumstances both constitutionally and morally ordinary, the legislative and executive branches should defer.) But we should not accept the second claim, in my view. Neither total abstinence from the non-Thayerian practice of judicial review nor total indulgence in it is appropriate. Here, as elsewhere, there is a more moderate choice – a "middle way." In the case of at least a few indeterminate constitutional norms, the practice of judicial review should be non-Thayerian. Which norms? As I have suggested: important right- or liberty-regarding norms that our history has shown to be "unusually vulnerable to majority sentiment."¹³⁰

Admittedly, the position I am recommending here – non-Thayerian judicial review for important right- or liberty-regarding norms "unusually vulnerable to majority sentiment" – is embedded in speculative and therefore highly contestable judgments about the likely consequences of alternative ways of allocating political power. (What position in the area is not so embedded, at least in part?) Still, in the context of the United States today, the position I am recommending here resolves any doubt about the appropriate judicial role in protecting such norms – which is, of course, an easy doubt to have, given the difficulty of the issue – in a politically realistic direction, namely, toward privileging more generous rather than less generous specifications of the norms. "Non-Thayerian judicial review for important right- or liberty-regarding norms 'unusually vulnerable to majority sentiment'" comes at least as

close as any competing position to satisfying Bickel's famous criteria – or so it seems to me:

The search must be for a function which might (indeed, must) involve the making of policy, yet which differs from the legislative and executive functions; which is peculiarly suited to the capabilities of the courts; which will not likely be performed elsewhere if the courts do not assume it; which can be so exercised as to be acceptable in a society that generally shares Judge [Learned] Hand's satisfaction in a "sense of common venture"; which will be effective when needed; and whose discharge by the courts will not lower the quality of the other departments' performance by denuding them of the dignity and burden of their own responsibility.¹³¹

The disagreement between Waldron and American political-legal culture about whether an entrenched bill of rights is a good thing is no more susceptible to definitive resolution than the issue between a thoroughgoing Thayerian and me about how deferential a role the Court should play in connection with certain right- or liberty-regarding norms. What Bickel said about judicial review is relevant both to the difference between Waldron and American political-legal culture and to the difference between a thoroughgoing Thayerian and me: "It will not be possible fully to meet all that is said against judicial review. Such is not the way with questions of government. We can only fill the other side of the scales with countervailing judgments on the real needs and the actual workings of our society and, of course, with our own portions of faith and hope. Then we may estimate how far the needle has moved."¹³²

In many constitutional cases – even cases in which the question of the norm the relevant provision represents cannot usefully be answered by a repetition of what the provision says – an identification of the norm the provision represents will be unnecessary: The Supreme Court will *already* have identified, in an earlier case now deemed authoritative, the norm the provision represents. Moreover, if the applicable constitutional norm (or norms) is indeterminate, the Court might *already* have begun, in earlier cases, the process of specifying the norm – a process that, if it has been going on for a long time, will have yielded a substantial body of constitutional doctrine, much of which will not be in question but will be deemed authoritative. In the cases in which the applicable constitutional doctrine is itself indeterminate – as, at the margin, constitutional doctrine typically is – the challenge will be to develop that doctrine further. In that sense, the challenge will be to shape further the norm that is both the warrant for and the foundation of the doctrine. The specification of an indeterminate constitutional norm is, then, a temporally extended process, the judicial version of which is analogous to the ongoing judicial development of – including the occasional revision of – the "common law." Of course, a principal aim in the judicial development of any area of law, includ-

ing any area of constitutional law, is to fashion doctrine that is both internally coherent and at least not inconsistent with other doctrines of equal legal status, especially other doctrines in the same neighborhood.

IV. Concluding Comment

Again, some of the most devious moral conflicts that have beset us Americans since the end of World War II have been transmuted into constitutional conflicts. As I said in the opening paragraph of this essay, if one wants to inquire which of those conflicts, if any, understood as constitutional conflicts, have been resolved as they should have been resolved, one must first answer, as I have done in this essay, several prior, fundamental questions that arise in connection with the Constitution. Although more must be said, in pursuit of inquiries commenced in this essay, the ideal context for doing so is an extended discussion of particular constitutional controversies. Such controversies provide the concrete detail one needs both to exemplify the constitutional-theoretical issues at stake and, then, to explicate and buttress positions on the issues. The constitutional controversies that have most engaged me – and that in subsequent work I will discuss against the background, and in elaboration, of my arguments in this essay – are those that have been decided, in the period since the end of World War II, on the basis of claims about what the Fourteenth Amendment forbids: controversies involving such deeply divisive moral issues as racial segregation, affirmative action, sex-based discrimination, homosexuality, abortion, and physician-assisted suicide.

Notes

- 1 Well, almost no disagreement. In 1789, Congress proposed this constitutional amendment: "No law varying the compensation for the services of the Senators and Representatives shall take effect, until an election of Representatives shall have intervened." In 1992 – more than two hundred years later! – the thirty-eighth state voted to ratify the proposed amendment, which Congress then declared "valid . . . as part of the Constitution of the United States." One may fairly wonder whether completion of the process of ratifying the (alleged) Twenty-seventh Amendment was legally valid – and whether, therefore, the Constitution₁ really contains the language of the amendment. See, e.g., William Van Alstyne, *What Do You Think About the Twenty-seventh Amendment?* 10 *Constitution Commentary* 9 (1993).
- 2 The Preamble states, in its entirety, "We the people of the United States, in Order to form a more perfect Union, establish Justice, insure domestic Tranquility, provide for the common defence, promote the general Welfare, and secure the Blessings of Liberty to ourselves and our Posterity, do ordain and establish this Constitution for the United States of America."

- 3 I write "We the people" rather than "We the People" because in the original text of the Constitution, which I am quoting, the first letter of "people" is lower case.
- 4 See Section I.C. Moreover, American constitutional history reveals that it is not only "We the people" who do in fact establish norms as constitutional. See *id.*
- 5 Steven D. Smith, *Law Without Mind*, 88 Michigan L. Rev. 104, 119 (1989).
- 6 Richard Kay has emphasized, over the course of several essays, much the same point I am making here:

There may be plausible theories of government and judicial review which demote the authority of both intention and text, but it is hard to see what the political rationale would be for a theory that elevates a text for reasons unrelated to the people and circumstances which created it.

Richard S. Kay, *Adherence to the Original Intentions in Constitutional Adjudication: Three Objections and Responses*, 82 Northwestern U. L. Rev. 226, 234 (1988).

[T]o the extent we would bind ourselves, in whole or in part, to rules inferred from mere marks and letters on paper without reference to the will of the human beings who selected those marks and letters, we enter a regime very foreign to our ordinary assumptions about the nature of law.

Richard S. Kay, *Original Intentions, Standard Meanings, and the Legal Character of the Constitution*, 6 Constitutional Commentary 39, 50 (1989).

The influence of the Constitution is the consequence of continuing regard not for a particular assortment of words, but for the authority and sense of a certain constituent act. . . . [To deem authoritative the words of a constitutional provision] independently of the intentional act which created them is to disregard exactly that which makes the text demand our attention in the first place. That the words will bear some different meaning is purely happenstance. Without their political history, the words of the Constitution have no more claim on us than those of any other text.

Richard S. Kay, *The Bork Nomination and the Definition of "The Constitution,"* 84 Northwestern U. L. Rev. 1190, 1193 (1990).

Paul Campos's work is also relevant to the point I am making here. See his *Against Constitutional Theory*, 4 Yale J. L. & Humanities 279 (1992), *That Obscure Object of Desire: Hermeneutics and the Autonomous Legal Text*, 77 Minnesota L. Rev. 1065 (1993), and *Three Mistakes about Interpretation*, 92 Michigan L. Rev. 388 (1994).

- 7 The "people" who ordained and established the Constitution and Bill of Rights at the end of the nineteenth century and the "people" who amended the Constitution after the Civil War consisted mainly of white males. The question why we the people now living should accept constitutional directives issued by persons long dead as our "supreme Law of the Land" has a special urgency, therefore, for those of us who are not white males. See James MacGregor Burns, *The Vineyard of Liberty* 392 (1982): "Every new state admitted after 1819 restricted voting to whites. Only five New England states – Massachusetts, Rhode Island, Maine, New Hampshire, and Vermont – provided for equal voting rights for black and white males." Cf. *id.* at 364: "Some suffrage restrictions fell during the Jeffersonian era . . . and during the War with England. . . . Property requirements were replaced by taxpaying requirements, which in turn gradually faded away. . . . 'Well before Jackson's elec-

tion most states had lifted most restrictions on the suffrage of white male citizens or taxpayers.' "

- 8 See, e.g., *Constitutional Stupidities Symposium*, 12 *Constitutional Commentary* 139–225 (1995) (twenty essays on "the stupidest provision of the United States Constitution").
- 9 I quote Article V later in this subsection.
- 10 Russell Hardin, *Why a Constitution?* in *The Federalist Papers and the New Institutionalism* 100, 102, 113 (Bernard Grofman & Donald Wittman, eds., 1989).
- 11 Whether the processes of constitutional amendment provided for by Article V are the only constitutionally legitimate way to amend the Constitution – whether they are the only constitutionally ordained processes of constitutional amendment – is a matter of controversy. On this, and on many other interesting questions about constitutional amendment, see the rich collection of essays in Sanford Levinson, ed., *Responding to Imperfection: The Theory and Practice of Constitutional Amendment* (1995). See also Lawrence Lessig, *What Drives Derivability: Responses to "Responding to Imperfection,"* 74 *Texas L. Rev.* 839 (1996) (reviewing the Levinson collection); Frank I. Michelman, *Thirteen Easy Pieces*, 93 *Michigan L. Rev.* 1297 (1995) (reviewing the Levinson collection); and Henry Paul Monaghan, *We the People[s], Original Understanding, and Constitutional Amendment*, 96 *Columbia L. Rev.* 121 (1996).

It is implausible to suggest that constitutionally ordained processes of constitutional amendment are the only *morally* legitimate way to alter the Constitution. On this issue, too, see the Levinson collection. See also Richard S. Kay, *Comparative Constitutional Fundamentals*, 6 *Connecticut J. International L.* 445 (1991). Cf. Richard S. Kay, Book Review, 7 *Constitution Commentary* 434, 440–1 (1990): "No matter how far they transgress existing rules, successful constitutional conventions, like those of 1787–89, are unlikely to be perceived as outlaws. If they prosper, they will be founders."

In the conclusion to *The Constitution in the Courts*, I suggested a modification in the practice of judicial review under which the Congress and the president, acting together in their legislative capacity, would play a larger role, not in amending the Constitution, but in shaping indeterminate constitutional norms. See Michael J. Perry, *The Constitution in the Courts: Law or Politics?* 197–201 (1994). Perhaps they – and, especially, "We the people" – should play a larger role, too, in amending the Constitution, as Bruce Ackerman has suggested. See his *We the People: Foundations* 54–5 (1991) and *We the People: Transformations*, ch. 13 (draft, 1996). Or perhaps they shouldn't: "Article V is part of a Constitution that reflects a considered attempt to slow down change, and it has been so understood from the very beginning of our constitutional history. In our time, this policy may be a wise one." Monaghan, *supra*, this note at 177.

- 12 Not that there might not be costs to our doing so. A second practical reason for bowing to constitutional directives that we believe should not be a part of the Constitution, unless/until they are disestablished in a constitutionally ordained way, is that if and to the extent we were not to do so, if and to the extent we were to disestablish constitutional directives in an other than constitutionally ordained way – or if and to the extent we were to condone violations of constitutional directives – we

would risk diminishing our own power. Some day we might want to issue a constitutional directive. By maintaining a culture of fidelity to constitutional directives that have not been disestablished in a constitutionally ordained way, including directives issued by persons long dead, we make it more likely that a constitutional directive issued by *us* will be obeyed (unless/until it is disestablished in a constitutionally ordained way) even when *we* are long dead.

13 See Ackerman, *supra*, note 11, chs. 4–8.

14 Indeed, a constitution can forbid that one or more of its parts be amended at all. It has been suggested that the constitution of Germany, because it “declares that certain fundamental principles are immune to constitutional amendment,” exemplifies “absolute entrenchment.” Anupam Chander, *Sovereignty, Referenda, and the Entrenchment of a United Kingdom Bill of Rights*, 101 Yale L. J. 457, 462, and n. 30 (1991). See Bruce Ackerman, *The Future of Liberal Revolution* 110–11 (1992) (commenting on the German practice of absolute entrenchment). The constitution of Japan arguably immunizes some of its parts against amendment in providing, in Article 11, that “[t]he people shall not be prevented from enjoying any of the fundamental human rights. These fundamental human rights guaranteed to the people by this Constitution shall be conferred upon the people of this and future generations as eternal and inviolate rights.” Similarly, Article 98 provides, “The fundamental human rights by this Constitution guaranteed to the people of Japan are fruits of the age-old struggle of man to be free; they have survived the many exacting tests for durability and are conferred upon this and future generations in trust, to be held for all time inviolate.”

15 The “may” is the may of legality, not of politics or of morality. See *supra*, note 11. Cf. Chander, *supra*, note 14 at 462: “An absolutely entrenched [constitutional norm] is . . . (as are all other parts of an existing legal regime) vulnerable to revolution.”

We might be tempted to think that the constitutional strategy for establishing a directive differs from the statutory strategy in another basic respect, in that constitutions, unlike statutes, typically declare themselves to be “the supreme law” – and that therefore to opt for the constitutional strategy is to decree that the directive is lexically prior to statutory and other nonconstitutional law, including subsequently enacted law. (Article VI of the Constitution states, “This Constitution . . . shall be the supreme law of the land. . . .” Article 98 of the Japanese Constitution states, “This Constitution shall be the supreme law of the nation and no law, ordinance, imperial rescript or other act of government, or part thereof, contrary to the provisions hereof, shall have legal force or validity.”) But a legislature may decree in a statute establishing a directive that the directive is lexically prior to subsequently enacted statutory law in this sense and to this extent: “A court is not to give effect to any future statute enacted by this legislature to the extent the statute, in the court’s judgment, violates the directive established by this statute, *unless such future statute explicitly states that a court is to give it effect even if in the court’s judgment the statute violates the directive established by this statute.*” See *id.* at 463: “One common type of manner and form entrenchment requires that all contrary legislation contain an explicit declaration of its intent to override the entrenched rule.” Canada has pursued, in its Charter of Rights and Freedoms, such a

strategy. See Perry, *The Constitution in the Courts*, n. #, at 197–8. Even if a legislature may, in one session, enact such a decree, however, the legislature presumably may, in a later session, repeal the decree. See Julian N. Eule, *Temporal Limits on the Legislative Mandate: Entrenchment and Retroactivity*, 1987 American Bar Foundation Research J. 379. What is most distinctive about the constitutional strategy, then, is less the supremacy of constitutional law than the extreme difficulty of amending a constitution.

- 16 For an "outline of some of the reasons for entrenching institutional arrangements and substantive rights," see Cass R. Sunstein, *Constitutionalism and Secession*, 58 U. Chicago L. Rev. 633, 636–43 (1991).
- 17 See Thomas B. McAfee, *Brown and the Doctrine of Precedent: A Concurring Opinion*, 20 Southern Illinois U. L. Rev. 99, 100 (1995): "[O]ur constitutional order is based on a moral vision that humans have rights which they do not forfeit when joining civil society. At the same time, we recognize that the people are the supreme judiciary as to the content of those rights when they engage in the sovereign act of creating or amending the Constitution, a document which will in various ways define and limit those rights. There is no way out of this tension – our natural law aspirations must inevitably play themselves out through some system of human decision-making, and historically we have believed that the popular sovereignty manifest in the constitution-making process is likely to yield superior results to rule by judges or a system in which each individual becomes the judge of his own obligations to enacted law."
- 18 It would be especially difficult to justify the Court imposing on government, in the name of the Constitution, a norm that no one, past or present, could fairly read any language in the Constitution to represent. As Justice William Brennan explained in his Hart Lecture at Oxford: "But if America's experience demonstrates that paper protections are not a sufficient guarantor of liberty, it also suggests that they are a necessary one, particularly in times of crisis. Without a textual anchor for their decisions, judges would have to rely on some theory of natural right, or some allegedly shared standard of the ends and limits of government, to strike down invasive legislation. But an appeal to normative ideals that lack any mooring in the written law . . . would in societies like ours be suspect, because it would represent so profound an aberration from majoritarian principles. . . . A text . . . helps tether [judges'] discretion. I would be the last to cabin judges' power to keep the law vital, to ensure that it remains abreast of the progress in man's intellect and sensibilities. Unbounded freedom is, however, another matter. One can imagine a system of governance that accorded judges almost unlimited discretion, but it would be one reminiscent of the rule by Platonic Guardians that Judge Learned Hand so feared. It is not one, I think, that would gain allegiance in either of our countries." William J. Brennan, Jr., *Why Have a Bill of Rights?* 9 Oxford J. Legal Studies 425, 432 (1989).

Recalling that Chief Justice John Marshall's justification for the practice of judicial review, in *Marbury v. Madison*, appealed to the writtenness of the Constitution (see *Marbury v. Madison*, 5 U.S. (1 Cranch) 137, 177 (1803)), Michael Moore has commented that "[j]udicial review is easier to justify if it is exercised with reference only to the written document. . . . By now, the object of [constitutional] inter-

- pretation should be clear: it is the written document. Hugo Black was right, at least, about this. Black's Constitution – the one he was so fond of pulling out of his pocket – is our only Constitution." Michael S. Moore, *Do We Have an Unwritten Constitution?* 63 Southern California L. Rev. 107, 122, 123 (1989). See *id.* at 121–3. See also *infra*, note 50, and accompanying text.
- 19 I discuss the "specification" of indeterminate constitutional norms in Section II.B.
 - 20 See, e.g., Robert Bork, *The Tempting of America: The Political Seduction of the Law* 155–9 (1989); and Antonin Scalia, *A Matter of Interpretation: Federal Courts and the Law* 139–40 (1997). But see Gary S. Lawson, *The Constitutional Case against Precedent*, 15 Harvard J. L. & Public Policy 23 (1994). For a critical comment on Gary Lawson's position, see McAfee, *supra*, note 17 at 101–3.
 - 21 Or, at least, by those of us – policy-makers, religious leaders, editorial writers, politically engaged citizens, etc. – who concern ourselves with such things.
 - 22 Cf. Frederick Schauer, *Amending the Presuppositions of a Constitution*, in Levinson, *supra*, note 11 at 145, 156–57 (presenting a hypothetical in which "[t]he small c constitution would . . . have been amended by virtue of [an] amendment to the ultimate rule of recognition, even though it could also be accurately said that the large C Constitution had not been validly amended according to its own terms").
 - 23 For a complementary discussion, see McAfee, *supra*, note 17 at 104: "[The Supreme] Court ought to be especially reluctant to overrule precedent that is: (1) proven and long-established; (2) the product of the carefully considered judgment of all three branches of the government; and (3) based upon the fundamental values of the sovereign people. Under such circumstances, the least that can be said is that the case for the impropriety of the original constitutional judgment should be overwhelming before [the] Court should even decide whether to overrule such a precedent."
 - 24 Bork, *supra*, note 20 at 158. For a thoughtful discussion, see Peter B. McCutcheon, *Mistakes, Precedent, and the Rise of the Administrative State: Toward a Constitutional Theory of the Second Best*, 80 Cornell L. Rev. 1 (1994).
 - 25 Cf. Lawson, *supra*, note 20 at 33, n. 27 (wondering whether "the irrevocable enshrinement of errors through precedent should compel the self-conscious creation of errors in subsequent cases").
 - 26 See Michael J. Perry, *The Fourteenth Amendment: What Norms Did "We the People" Establish?* (1997) (unpublished essay on file with author).
 - 27 Cf. Charles L. Black, Jr., "One Nation Indivisible": *Unnamed Human Rights in the States*, 65 St. John's L. Rev. 17, 55 (1991): "[W]ithout such a corpus of national human rights law good against the States, we ought to stop saying, 'One nation indivisible, with liberty and justice for all,' and speak instead of, 'One nation divisible and divided into fifty zones of political morality, with liberty and justice in such kind and measure as these good things may from time to time be granted by each of these fifty political subdivisions.'" "
 - 28 The First Amendment states, "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the government for a redress of grievances." That section 1 of the Fourteenth Amendment was meant to protect against state government the privileges

and immunities of citizens already protected against the national government by the Bill of Rights does not entail that the First Amendment was meant to protect any privileges or immunities of citizens against the national government. Jay Bybee has recently argued that the First Amendment, unlike the Second through Eighth Amendments, was not meant to protect any privileges or immunities of citizens – that is, any privileges or immunities that persons were thought to have in virtue of their status as citizens – but only to make explicit a congressional disability, a lack of legislative power on the part of Congress ("Congress shall make no law . . ."). See Jay S. Bybee, *Taking Liberties with the First Amendment: Congress, Section 5, and the Religious Freedom Restoration Act*, 48 Vanderbilt L. Rev. 1539 (1995). See also Steven D. Smith, *Foreordained Failure: The Quest for a Constitutional Principle of Religious Freedom* chs. 2–3 (1995).

29 See Perry, *supra*, note 26.

30 See, e.g., *Bolling v. Sharpe*, 437 U.S. 497 (1954).

31 See Michael J. Perry, *Discrimination and Race* (1997) (unpublished essay on file with author). By itself, the Fifth Amendment, which became a part of the Constitution in 1791, applies only to the national government. The Fourteenth Amendment, which became a part of the Constitution in 1868, applies only to state government.

32 See *id.*

33 Cf. McCutcheon, *supra*, note 24 (noting that the "unconstitutional" administrative state is now beyond judicial overruling).

34 For efforts to articulate criteria that should inform a theory of precedent, see – in addition to McAfee, whom I quote in note 17 – Michael J. Gerhardt, *The Role of Precedent in Constitutional Decisionmaking and Theory*, 60 George Washington L. Rev. 68 (1991), and Henry P. Monaghan, *State Decisions and Constitutional Adjudication*, 88 Columbia L. Rev. 144 (1988).

35 For an example of such a claim, see *Planned Parenthood of Southeastern Pennsylvania v. Casey*, 505 U.S. 833, 854–69 (1992).

36 I am skeptical about how accurately we can generalize either about how such "nonconstitutional" premises emerge in our constitutional law or about how, when they do emerge, some of them eventually survive to become constitutional bedrock. I suspect that we can only particularize. But cf. Ackerman's *We the People: Foundations* and *We the People: Transformations*, *supra*, note 11.

37 The First Amendment states, in relevant part, that "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof. . . ." According to the constitutional law of the United States, however, neither any branch of the national government nor state government may establish religion or prohibit the free exercise thereof. For a discussion, see Michael J. Perry, *Religion in Politics* 10–12 (1997).

38 See, e.g., *Lundman v. McKown*, 530 N.W.2d 807 (Minnesota 1995). See also Caroline Frasier, *Suffering Children and the Christian Science Church*, Atlantic Monthly, April 1995, at 105.

39 Discussing "a distinction that is implicit in the idea of 'persecution' " and that the Court in *Church of the Lukumi Babalu Aye, Inc. v. City of Hialeah* (113 S.Ct. 2217 (1993)) "repeatedly tried to articulate," Steve Smith has explained, "The distinction is between measures that 'target' a religion *on religious grounds* and because

it is objectionable *as* a religion and, on the other hand, measures that ‘target’ a religion only by prohibiting a practice of the religion that is objectionable *on independent or nonreligious grounds*.” Steven D. Smith, *Free Exercise Doctrine and the Discourse of Disrespect*, 65 U. Colorado L. Rev. 519, 563 (1994). See *id.* at 563–8.

- 40 For an extended presentation and defense of the latter position, see Michael W. McConnell, *The Origins and Historical Understanding of Free Exercise of Religion*, 103 Harvard L. Rev. 1309 (1993); McConnell’s historical argument has been criticized. See Gerard V. Bradley, *Beguiled: Free Exercise Exemptions and the Siren Song of Liberalism*, 20 Hofstra L. Rev. 245 (1991), and Philip A. Hamburger, *A Constitutional Right of Religious Exemption: An Historical Perspective*, 60 George Washington L. Rev. 915 (1992). However, Peter Braffman has presented a powerful argument that McConnell’s position is closer to the truth than are the views of those who have criticized his position. See Peter A. Braffman, *The Original Understanding of the Free Exercise Clause* (May 1995) (unpublished ms.). According to Braffman, “Protecting ‘free exercise of religion’ meant protecting those religiously motivated actions which did not disrupt the public peace.” *Id.* at 81. Braffman elaborates: “The public peace did not refer to all laws of the land, but rather to a limited category of laws which prevented overt acts of violence that disrupted civil society. As such, religiously motivated conduct could conflict with – and be exempted from – general laws so long as that conduct did not violate the peace.” *Id.* at 96. See also Kurt T. Lash, *The Second Adoption of the Free Exercise Clause: Religious Exemptions Under the Fourteenth Amendment*, 88 Northwestern U. L. Rev. 1106 (1994).

- 41 In *Employment Division, Oregon Department of Human Resources v. Smith*, Justice Scalia wrote, for himself and four other members of the Court, that “if prohibiting the exercise of religion . . . is . . . merely the incidental effect of a generally applicable and otherwise valid provision,” the free-exercise norm, without regard to whether the refusal to exempt the religious practice in question serves an important public interest, has not been violated. *Employment Division, Department of Human Resources of Oregon v. Smith*, 494 U.S. 872, 878 (1990). Three members of the Court joined a statement by Justice O’Connor that the accommodation position should not have been rejected by the majority. See 494 U.S. at 892–903. The majority’s position provoked so many interested persons off the Court that an unprecedented alliance of groups, from the American Civil Liberties Union on the one side to the so-called religious right on the other, joined forces to lobby Congress to undo the decision. The alliance was successful. Congress enacted, in 1993, the Religious Freedom Restoration Act, Public Law 103–41, 42 U.S. Code 2000bb. Section 3 of the act states, “Government shall not substantially burden a person’s exercise of religion even if the burden results from a rule of general applicability, [unless] . . . it demonstrates that application of the burden to the person (1) is in furtherance of a compelling governmental interest; and (2) is the least restrictive means of furthering that compelling governmental interest.” (After the Court’s decision in *Smith*, which involved Oregon’s failure to exempt the religious use of peyote from its ban on the ingestion of hallucinogenic substances, Oregon passed a law making it lawful to use peyote in connection “with the good

faith practice of a religious belief" or association "with a religious practice." Oregon Revised Statutes §475.992(5)(a)&(b) (1991).)

On the Religious Freedom Restoration Act, see Thomas C. Berg, *What Hath Congress Wrought? An Interpretive Guide to the Religious Freedom Restoration Act*, 39 Villanova L. Rev. 1 (1994); Scott C. Idleman, *The Religious Freedom Restoration Act: Pushing the Limits of Legislative Power*, 73 Texas L. Rev. 247 (1994); Douglas Laycock and Oliver S. Thomas, *Interpreting the Religious Freedom Restoration Act*, 73 Texas L. Rev. 209 (1994); *Symposium: The Religious Freedom Restoration Act*, 56 Montana L. Rev. 1–294 (1995).

In June 1997, the Supreme Court ruled that in enacting the Religious Freedom Restoration Act, Congress exceeded the scope of its power under Section 5 of the Fourteenth Amendment. See *City of Boerne v. Flores*, 65 LW 4612 (1997). Three lower federal courts had ruled to the contrary. See *Flores v. City of Boerne, Texas*, 73 F.3d 1352 (5th Cir. 1996); *Sasnett v. Sullivan*, 65 USLW 2115 (7th Cir. 1996); *Belgard v. Hawaii*, 883 F.Supp. 510 (D Hawaii 1995). At the time of the Court's ruling, scholarly opinion was divided. Those who argued that RFRA is unconstitutional include: Bybee, *supra*, note 28 at 1624–32; Daniel O. Conkle, *The Religious Freedom Restoration Act: The Constitutional Significance of an Unconstitutional Statute*, 56 Montana L. Rev. 39 (1995); Christopher L. Eisgruber and Lawrence G. Sager, *Why the Religious Freedom Restoration Act Is Unconstitutional*, 69 New York University L. Rev. 437 (1995); Eugene Gressman and Angela C. Carmella, *The RFRA Revision of the Free Exercise Clause*, 57 Ohio State L. J. 65 (1996); Marci A. Hamilton, *The Religious Freedom Restoration Act: Letting the Fox into the Henhouse under Cover of Section Five of the Fourteenth Amendment*, 16 Cardozo L. Rev. 357 (1994); and William W. Van Alstyne, *The Failure of the Religious Freedom Restoration Act under Section 5 of the Fourteenth Amendment*, 46 Duke L. J. 291 (1996). For arguments that RFRA is constitutional, see Douglas Laycock, *RFRA, Congress, and the Ratchet*, 56 Montana L. Rev. 145, 152–70 (1995), and Bonnie I. Robin-Vergeer, *Disposing of the Red Herrings: A Defense of the Religious Freedom Restoration Act* 69 Southern California L. Rev. 589 (1996). In my view, Laycock's and Robin-Vergeer's arguments are persuasive.

A full treatment of the issue of the constitutionality of RFRA would have to deal with the establishment clause claim on which Justice Stevens relied in concurring in the Court's ruling of unconstitutionality. See 65 LW at 4620. See also Christopher L. Eisgruber and Lawrence G. Sager, *The Vulnerability of Conscience: The Constitutional Basis for Protecting Religious Conduct*, 61 U. Chicago L. Rev. 1245 (1994). I have addressed the claim briefly. See Perry *supra*, note 37 at 25–30. See also Robin-Vergeer, *supra*, this note at 754–6. A full treatment would also have to address the federalism problem that several scholars have raised. See, e.g., Van Alstyne, *supra*, this note at 315–18, 322–3. Both Laycock and Robin-Vergeer have addressed the problem. See Laycock, *supra*, this note at 157–65; Robin-Vergeer, *supra*, this note at 756–64.

42 This was the position of the majority in the *Slaughter-House Cases*. See *Slaughter-House Cases*, 83 U.S. (16 Wall.) 36 (1873). But see Richard L. Aynes, "Constricting the Law of Freedom: Justice Miller, the Fourteenth Amendment, and the

Slaughter-House Cases,” 70 Chicago-Kent L. Rev. 627, 627 and n. 4 (1994) (noting that “everyone agrees” that the majority’s position in the *Slaughter-House Cases* was wrong).

- 43 I address all these questions elsewhere. See Perry, *supra*, note 26.
- 44 I address these questions, too, in *id.*
- 45 John Hart Ely, *Democracy and Distrust: A Theory of Judicial Review* 25 (1980). I address the who-is-protected question in Perry, *supra*, note 26.
- 46 Ely, *supra*, note 45 at 16.
- 47 For a discussion of the confusion, see Perry, *supra*, note 11 at 42–6.
- 48 For a helpful discussion of how – on the basis of what sources – to pursue such an inquiry, see Steven G. Calabresi and Saikrishna B. Prakash, *The President’s Power to Execute the Laws*, 104 Yale L. J. 541, 550–9 (1994).
- 49 Consider, for example, the vigorous debate about what norm the free-exercise language of the First Amendment was understood to communicate. See, on one side of the debate, McConnell, *supra*, note 40 at 1409, and Michael W. McConnell, *Free Exercise Revisionalism and the Smith Decision*, 57 U. Chicago L. Rev. 1109 (1990). McConnell acknowledges, however, that the historical record does not speak unequivocally. See his *Origins and Historical Understanding* at 1511–13, and *Free Exercise Revisionism* at 1117. Indeed, one could plausibly conclude, as some scholars have, that McConnell’s position is wrong. See, e.g., William P. Marshall, *The Case Against the Constitutionally Compelled Free Exercise Exemption*, 40 Case Western Reserve L. Rev. 357, 375–9 (1989–90); Gerard V. Bradley, *Beguiled: Free Exercise Exemptions and the Siren Song of Liberalism*, 20 Hofstra L. Rev. 245 (1991); and Philip A. Hamburger, *A Constitutional Right of Religious Exemption: An Historical Perspective*, 60 George Washington L. Rev. 915 (1992). According to Peter Braffman, McConnell’s position is closer to the truth than is that of his opponents. See Braffman, *supra*, note 40.
- 50 Andrzej Rapaczynski, *The Ninth Amendment and the Unwritten Constitution: The Problems of Constitutional Interpretation*, 64 Chicago-Kent L. Rev. 177, 192 (1988). See *supra*, note 18.
- 51 See *supra*, note 30.
- 52 By “adjudicative” facts, I mean the facts of the case (e.g., who did what, and where and when she did it), as distinct from “legislative” facts, that transcend the case (e.g., what will most likely happen to our society if we let this kind of speech go unregulated).
- 53 See Lawrence B. Solum, *On the Indeterminacy Crisis: Critiquing Critical Dogma*, 54 U. Chicago L. Rev. 462 (1987).
- 54 Neil MacCormick, *Reconstruction after Deconstruction: A Response to CLS*, 10 Oxford J. Legal Studies 539, 548 (1990). Where I have used the term “specification,” MacCormick uses the Latin term *determinatio*, borrowing it from John Finnis. “John Finnis has to good effect re-deployed St Thomas’ concept of *determinatio*; Hans Kelsen’s translators used the term ‘concretization’ to much the same effect.” *Id.* (citing J. M. Finnis, *On the Critical Legal Studies Movement*, 30 American J. Jurisprudence 21, 23–5 [1985], and Hans Kelsen, *The Pure Theory of Law* 230 [1967]).

55 Put another way, it is the challenge of deciding how best to avoid the political-moral *disvalue* at the heart of the norm.

56 Anthony T. Kronman, *Living in the Law*, 54 U. Chicago L. Rev. 835, 847–8 (1987).

In *The Federalist*, No. 37, James Madison commented on the need, in adjudication, for specification: "All new laws, though penned with the greatest technical skill and passed on the fullest and most mature deliberation, are considered as more or less obscure and equivocal, until their meaning be liquidated and ascertained by a series of particular discussions and adjudications." *The Federalist Papers* 229 (Clinton Rossiter, ed., 1961). Cf. Kim Lane Scheppele, *Legal Secrets* 94–5 (1988): "Generally in the literature on interpretation the question being posed is, What does a particular text (or social practice) *mean*? Posed this way, the interpretive question gives rise to an embarrassing multitude of possible answers, a cacophony of theories of interpretation. . . . [The] question that (in practice) is the one actually asked in the course of lawyering and judging [is]: what . . . does a particular text mean *for the specific case at hand*?"

In *Truth and Method* 275 (1975), Hans-Georg Gadamer commented on the process of specification both in law and in theology: "In both legal and theological hermeneutics there is the essential tension between the text set down – of the law or of the proclamation – on the one hand and, on the other, the sense arrived at by its application in the particular moment of interpretation, either in judgment or in preaching. A law is not there to be understood historically, but to be made concretely valid through being interpreted. Similarly, a religious proclamation is not there to be understood as a merely historical document, but to be taken in a way in which it exercises its saving effect. This includes the fact that the text, whether law or gospel, if it is to be understood properly, i.e., according to the claim it makes, must be understood at every moment, in every particular situation, in a new and different way. Understanding here is always application."

57 Richard A. Posner, *What Am I? A Potted Plant?* New Republic, September 28, 1987, at 23, 24. Cf. Benjamin N. Cardozo, *The Nature of the Judicial Process* 67 (1921): "[W]hen [judges] are called upon to say how far existing rules are to be extended or restricted, they must let the welfare of society fix the path, its direction and its distance."

58 H. L. A. Hart, *The Concept of Law* 128 (2d ed., 1994).

59 *Id.*

60 They can. One way to do so, Hart writes, "is to freeze the meaning of the rule so that its general terms must have the same meaning in every case where its application is in question. To secure this we may fasten on certain features present in the plain case and insist that these are both necessary and sufficient to bring anything which has them within the scope of the rule, whatever other features it may have or lack, and whatever may be the social consequences of applying the rule in this way." *Id.* at 129.

61 This is not to say that determinacy ought never to be a goal: "To escape this oscillation between extremes we need to remind ourselves that human inability to anticipate the future, which is at the root of this indeterminacy, varies in degree in different fields of conduct. . . ." *Id.* at 130–1. See *id.* at 130 et seq.

62 Id. at 129–30.

63 Cardozo, *supra*, note 57 at 83–4.

64 See Richard Kay, "American Constitutionalism," in *Constitutionalism: Philosophical Foundations* (Lawrence A. Alexander, ed., forthcoming): "Since the principal feature of constitutionalism is its employment of fixed, a priori rules, constitutional interpretation cannot be a direction to decide individual controversies over the use of public power in whatever way is thought would be most congenial to the constitutional enactors. Such disputes are to be resolved, rather, by reference to the constitutional *rules*. Once the intended scope of the rules is decided, however, the relevance of the original intentions is exhausted."

65 Larry Alexander, *All or Nothing at All? The Intentions of Authorities and the Authority of Intentions*, in *Law and Interpretation: Essays in Legal Philosophy* 357, 370 (Andrei Marmor, ed., 1995). But see *supra*, note 64.

66 Much of the discussion in Alexander's essay, *id.*, seems to me to proceed on the basis of this implausible construal.

67 Patrick J. Kelley, *An Alternative Originalist Opinion for Brown v. Board of Education*, 20 Southern Illinois U. L. Rev. 75, 76 (1995).

68 Id. Kelley continues: "Thus, although the intended general meaning is fixed by legislative action and does not thereafter change, the set of factual applications of that fixed general meaning may expand or contract with the application of the fixed general meaning to changed circumstances. New situations, unheard of at the time the statute was enacted, may fall squarely within the fixed intended meaning. Later changes in the institutions existing at the time the statute was enacted may alter the later application of the fixed statutory meaning to those institutions. So the fact that no one at the time it was adopted thought that the Fourteenth Amendment affected segregated public schools is not controlling in the two-step process of first, determining the intended general meaning of constitutional language; and second, applying that fixed general meaning to particular current factual situations." Id. It is doubtful that "no one at the time it was adopted thought that the Fourteenth Amendment affected segregated public schooling." See Michael W. McConnell, *Originalism and the Desegregation Decisions*, 81 Virginia L. Rev. 947 (1995), and Michael W. McConnell, *The Originalist Justification for Brown: A Reply to Professor Klarman*, 81 Virginia L. Rev. 1937 (1995).

69 Hart, *supra*, note 58 at 129. Cf. Paul Brest:

The extent to which a clause may be properly interpreted to reach outcomes different from those actually contemplated by the adopters depends on the relationship between a general principle and its exemplary applications. A principle does not exist wholly independently of its author's subjective, or his society's conventional exemplary applications, and is always limited to some extent by the applications they found conceivable. Within these fairly broad limits, however, the adopters may have intended their examples to constrain more or less. To the intentionalist interpreter falls the unenviable task of ascertaining, for each provision, how much more or less.

What of a case where the adopters viewed a certain punishment as not cruel and unusual? This is not the same as saying that the adopters "intended not to prohibit the punishment." For even if they expected their laws to be interpreted by intentionalist canons, the adopters may have intended that their own views not always govern. Like parents who attempt to instill values in their child by both articulating and applying a moral principle, they may have

accepted, or even invited, the eventuality that the principle would be applied in ways that diverge from their own views. The adopters may have understood that, even as to instances to which they believe the clause ought or ought not to apply, further thought by themselves or others committed to its underlying principle might lead them to change their minds. Not believing in their own omniscience or infallibility, they delegated the decision to those charged with interpreting the provision. If such a motivation is plausible with respect to applications of the clause in the adopters' contemporary society, it is even more likely with respect to its application by future interpreters, whose understanding of the clause will be affected by changing knowledge, technology, and forms of society.

The Misconceived Quest for the Original Understanding, 60 Boston U. L. Rev. 204, 216–17 (1980) (paragraphs rearranged).

- 70 See *supra*, note 63. Cf. Richard A. Posner, *The Problems of Jurisprudence* 131 (1990): "In many cases the conventional materials will lean so strongly in one direction that it would be unreasonable for the judge to go in any other. But in some they will merely narrow the range of permissible decision, leaving an open area within which the judge must perforce attempt to decide the case in accordance with sound policy – in those grand symbolic cases that well up out of the generalities and ambiguities of the Constitution . . . – while paying due heed to the imprudence of trying to foist an idiosyncratic policy conception or social vision on a recalcitrant citizenry."
- 71 The First Amendment states, in relevant part, "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof. . . ." This and the other commands of the First Amendment are now taken to apply not only to the legislative branch of the national government, but also to the executive and judicial branches. Moreover, the commands are understood to apply not only to the national government, but also to state government. See Perry, *supra*, note 37 at 10–12.
- 72 See *supra*, note 41.
- 73 In its entirety, Section 2 of Article 10 states: "The exercise of these freedoms, since it carries with it duties and responsibilities, may be subject to such formalities, conditions, restrictions or penalties as are prescribed by law and are necessary in a democratic society, in the interests of national security, territorial integrity or public safety, for the prevention of disorder or crime, for the protection of health or morals, for the protection of the reputation or rights of others, for preventing the disclosure of information received in confidence, or for maintaining the authority and impartiality of the judiciary." For the European Convention, see Ian Brownlie, ed., *Basic Documents on Human Rights* 326 (1992).
- 74 See James Bradley Thayer, *The Origin and Scope of the American Doctrine of Constitutional Law*, 7 Harvard L. Rev. 129 (1893). See generally *One Hundred Years of Judicial Review: The Thayer Centennial Symposium*, 88 Northwestern U. L. Rev. 1–468 (1993).
- 75 *Handyside Case*, European Court of Human Rights, 1976, Ser. A, No. 24, 1 EHRR 737. The European Convention on the Protection of Human Rights and Fundamental Freedoms contains several provisions with provisos substantially identical to Article 10 §2. See Article 8 (protecting one's "right to respect for his private and family life, his home and his correspondence"), Article 9 (protecting "the right to

freedom of thought, conscience, and religion”), and Article 11 (protecting “the right to peaceful assembly and to freedom of association with others”).

Similar examples can be drawn from the international law of human rights. (A national political community can agree to remove certain choices or options from the agenda of its politics by ratifying legal norms established in conventional international law.) For example, Article 18 of the International Covenant on Civil and Political Rights provides in relevant part: “Everyone shall have the right to freedom of thought, conscience, and religion. This right shall include the freedom to have or adopt a religion or belief of his choice, and freedom, either individually or in community with others and in public or private, to manifest his religion or belief in worship, observance, practice or teaching.” Article 18 further states: “Freedom to manifest one’s religion or beliefs may be subject only to such limitations as are prescribed by law and are necessary to protect public safety, order, health, or morals of the fundamental rights and freedoms of others.” There is sometimes ample room for reasonable disagreement about what, in a particular context, “the public morals” require – or about what, in a particular context, is “necessary to protect public safety, order, health, or morals.” (For the ICCPR, see Brownlie, *supra*, this note at 125. The United States ratified the ICCPR, including Article 18, in 1992.)

On the “margin of appreciation” doctrine in the European Convention system, see Henry J. Steiner and Philip Alston, eds., *International Human Rights in Context: Law, Politics, Morals* 626–36 (1996).

76 *Roe v. Wade*, 410 U.S. 113 (1973); *Doe v. Bolton*, 410 U.S. 179 (1973).

77 This book continues my contribution to the enterprise. My other (and, in some cases and to some extent, recanted) contributions include *The Constitution, the Courts, and Human Rights* (1982); *The Authority of Text, Tradition, and Reason: A Theory of Constitutional “Interpretation,”* 58 Southern California L. Rev. 551 (1985); *Morality, Politics, and Law*, ch. 6 (1988); and *The Constitution in the Courts: Law or Politics?* (1994).

78 Philip Bobbitt’s presentation of six types of constitutional argument implicitly collapses the important difference between discerning what norm the text of a constitutional provision represents and deciding what shape to give an indeterminate constitutional norm in a particular context. See his *Constitutional Fate: Theory of the Constitution* (1982) and *Constitutional Interpretation* (1991). The same thing is true of Richard Fallon’s presentation of “the five types of argument that generally predominate in constitutional debate.” See his *A Constructive Coherence Theory of Constitutional Interpretation*, 100 Harvard L. Rev. 1189 (1987). (The quoted language appears at 1194.) Although Richard Posner, too, ignores the distinction between discerning what norm a constitutional norm represents and deciding what shape to give an indeterminate constitutional norm in a particular context, Posner’s writings in support of a “pragmatist” approach to constitutional adjudication are best understood, in my view, as supporting a pragmatist approach to the question of what shape to give, in a particular context, an indeterminate constitutional norm – or, at least, to the question of what shape to give an indeterminate constitutional doctrine (indeterminate in the context at hand) that is the yield of earlier judicial efforts to give shape to such a norm. See, e.g., Richard A. Posner,

- Bork and Beethoven*, 42 Stanford L. Rev. 1365 (1990), and Richard A. Posner, *What Has Pragmatism to Offer Law?* 63 S. California L. Rev. 1653 (1990). (On the relation between an indeterminate constitutional norm and the judicial development of constitutional doctrine, see Section III.B.)
- 79 Gadamer, *supra*, note 56 at 275. The complete passage in which Gadamer's statement appears is also in note 56.
- 80 See Perry, *supra*, note 11 at 34–5.
- 81 Brennan, *supra*, note 18 at 426.
- 82 "Judicial review" is the name for the judicial practice of inquiring if an act or failure to act violates the Constitution (the Constitution₂) of the United States. On the origins of the term "judicial review," see Robert Lowry Clinton, *Marbury v. Madison and Judicial Review* 7 (1989): "'Judicial review,' as a term used to describe the constitutional power of a court to overturn statutes, regulations, and other governmental activities, apparently was an invention of law writers in the early twentieth century. Edward S. Corwin may have been the first to coin the phrase, in the title of an article in the 1910 *Michigan Law Review*." Clinton's reference is to Edward S. Corwin, *The Establishment of Judicial Review*, 9 Michigan L. Rev. 102 (1910).
- 83 See Perry, *supra*, note 11 at 24–7.
- 84 See Charles L. Black, Jr., *Structure and Relationship in Constitution Law* 71 (1969): "[J]udicial review of Acts of Congress for federal constitutionality . . . rests also on the visible, active, and long-continued acquiescence of Congress in the Court's performance of this function. The Court now confronts not a neutral Congress nor a Congress bent on using its own constitutional powers to evade the Court's mandates, as some state legislatures have tried (and as Congress very clearly could succeed in doing, in many cases, if it were so minded), but rather a Congress which has accepted, and which by the passage of jurisdictional and other legislation has facilitated, this work of the Court." See also Sylvia Snowiss, *Judicial Review and the Law of the Constitution* x (1990): "I do not offer this [historical] reinterpretation as a way of attacking or defending the [modern] institution of judicial review. I share the prevailing view that judicial authority over legislation has by now generated sufficient support to be unaffected by assessments of original intent."
- 85 Consider, to cite but one, very important example, the European Court of Human Rights. For recent developments, see Anthony Lester, *Radical Reform of the Enforcement Procedures of the European Convention*, 8 Interrights Bulletin 25 (1994), and Jeremy McBride, *A New European Court of Human Rights*, 8 Interrights Bulletin 47 (1994).
- 86 For the argument, which invokes Article III of the Constitution, see Justice Story's persuasive opinion for the Court in *Martin v. Hunter's Lessee*, 14 U.S. (1 Wheat.) 404 (1816). Cf. Alexander M. Bickel, *The Least Dangerous Branch: The Supreme Court at the Bar of Politics* 12–13 (2d ed., 1986).

Article VI of the Constitution states that it "shall be the supreme Law of the Land; and the Judges in every State shall be bound thereby, any thing in the Constitution of Laws of any State to the Contrary notwithstanding." But this provision leaves room for a state judiciary to oppose its own view of what the Constitution₂ forbids to the Supreme Court's view (even if the Court's view is endorsed by one

or even by both of the other branches of the national government). The state judiciary's view will not stand, because, under Article III of the Constitution, the Supreme Court gets to reverse any state judiciary's interpretation of national law it believes to be incorrect.

87 See *supra*, note 90.

88 See, e.g., *Cooper v. Aaron*, 358 U.S. 1, 18 (1958) (unanimous op'n). For a persuasive critical comment on the relevant aspect of the Court's opinion in *Cooper v. Aaron*, see Robin-Vergeer, *supra*, note 41 at 643–50.

89 See Michael Stokes Paulsen, *The Most Dangerous Branch: Executive Power to Say What the Law Is*, 83 *Georgetown L. J.* 217 (1994), and Gary Lawson and Christopher D. Moore, *The Province and Duty of the President: The Executive Power of Constitutional Interpretation* (unpublished ms., 1995). See also Robin-Vergeer, *supra*, note 41. But cf. Van Alstyne, *supra*, note 41.

90 Similarly, the firm expectation, in American constitutional culture, is that the executive branch of the national government will stand behind a constitutional ruling of the Supreme Court – even one with which the officers of the executive branch, including the president, might disagree – that is being resisted by the state against whom the ruling has gone. In *Cooper v. Aaron*, *supra*, note 88, the justices of the Court understood this.

91 For an interesting elaboration of the point, see Larry Alexander and Frederick Schauer, *On Extrajudicial Constitution Interpretation*, 110 *Harvard L. Rev.* 1359 (1997).

92 Cf. Christopher L. Eisgruber, *The Most Competent Branches: A Response to Professor Paulsen*, 83 *Georgetown L. J.* 347, 371 (1994): “Considerations related to stability, individual rights, and judicial competence provide compelling justification for much (though not all) of the respect routinely accorded the judiciary. In particular, Paulsens’ Euclidean logic supplies no ground for doubting two core tenets of the modern doctrine of judicial supremacy: the states may not flout the Supreme Court’s interpretations of the Constitution, and the President is almost always (perhaps simply always) bound to comply with and enforce judicial mandates rendered in good faith.”

93 See generally Robin-Vergeer, *supra*, note 41. On RFRA, see *supra*, note 41.

94 The constitutionality of RFRA as applied to the laws and acts of the national government is beyond serious dispute. See *Equal Employment Opportunity Commission v. Catholic University of America*, 1996 WL 246568 (D.C. Cir.) – 83 F.3d 455 – (D.C. Cir. 1996).

95 See *supra*, note 41.

96 See David M. Beatty, ed., *Human Rights and Judicial Review: A Comparative Perspective* (1994).

97 See *supra*, note 41.

98 Cf. Jon Elster, *Majority Rule and Individual Rights*, in *On Human Rights: The Oxford Amnesty Lectures, 1993* 175 (Stephen Shute and Susan Hurley, eds., 1993).

99 See, e.g., Allan C. Hutchinson, *Waiting for Coraf: A Critique of Law and Rights* (1995), and Robert F. Nagel, *Judicial Power and American Character: Censoring Ourselves in an Anxious Age* (1994). Cf. Mary Becker, *Conservative Free Speech and the Uneasy Case for Judicial Review*, 64 *U. Colorado L. Rev.* 975 (1993).

- 100 On the so-called political question doctrine, see Louis Henkin, *Is There a "Political Question" Doctrine?* 85 Yale L. J. 597 (1976); Martin H. Redish, *Judicial Review and the Political Question*, 79 Northwestern U. L. Rev. 1031 (1985); and Robert F. Nagel, *Political Law, Legalistic Politics: A Recent History of the Political Question Doctrine*, 56 U. Chicago L. Rev. 643 (1989).
- 101 Abraham Lincoln, First Inaugural Address (March 4, 1861), reprinted in *Inaugural Addresses of the Presidents of the United States from George Washington 1789 to George Bush 1989*, S. Doc. No. 10, 101st Cong., 1st Sess. 133, 139 (1989).
- 102 19 How. 393 (1857). See Don E. Fehrenbacher, *The Dred Scott Case: Its Significance in American Law and Politics* (1978).
- 103 For further discussion, see Perry, *supra*, note 11 ch. 4.
- 104 See *id.* at 84–6 (discussing the influence of Justice Scalia's conception of proper judicial role on his interpretation of the free-exercise language of the First Amendment).
- 105 I have discussed this issue at length elsewhere. See *id.* ch. 6.
- 106 See *supra*, note 74.
- 107 See *supra*, note 75 and accompanying text.
- 108 Of course, different persons – different judges – might well draw the boundaries of "the reasonable" in different places. What I am referring to here is not an algorithm of choice, but a judicial stance, a judicial attitude. Although, at the limit, some judge might always or almost always draw the boundaries of "the reasonable" so that they are substantially congruent with "what I, the judge, believe," I think most of us recognize the arrogance, the dogmatism, in that. There will be some occasions, perhaps many, on which we want to say to our interlocutors: "I disagree with you. I think you are wrong. Nonetheless, I have to admit that your position is not unreasonable."
- 109 In commenting on the suggestion that the Constitution be read "to recognize that governmental assistance to meet basic material needs is a constitutional right," Terrance Sandalow writes: "I have already suggested that there is little in our constitutional tradition to warrant such a reading and much to argue against it. Even if that difficulty is waived, however, the question remains whether courts are competent to undertake the responsibility that Sager would assign them. Governmental budgets call for the resolution of intractable issues, requiring not only choices from among the innumerable demands upon the public fisc, but judgments about the levels of taxation the citizenry will accept and the economic effects of both taxation and the proposed expenditures. Responding to these issues requires access to technical resources unavailable to judges and a breadth of perspective that judges, just because they are politically unaccountable, necessarily lack. The demands upon the treasury that Sager would authorize judges to make, to put the latter point somewhat differently, would necessarily be the product of tunnel vision." Terrance Sandalow, *Social Justice and Fundamental Law: A Comment on Sager's Constitution*, 88 Northwestern U. L. Rev. 461, 467 (1993).
- 110 Herbert Wechsler's argument about "the political safeguards of federalism" is relevant here. See his *The Political Safeguards of Federalism*, in *Herbert Wechsler, Principles, Politics, and Fundamental Law* 49 (1961). See also Jesse H.

Choper, *Judicial Review and the National Political Process: A Functional Reconsideration of the Supreme Court*, ch. 4 (1980). For a fundamental and vigorous dissent from the position defended by Wechsler and the kindred position defended by Choper, see Steven G. Calabresi, "A Government of Limited and Enumerated Powers": *In Defense of United States v. Lopez*, 94 Michigan L. Rev. 752 (1995).

111 See *supra*, note 117 and accompanying text.

112 For one who accepts an "originalist" approach to constitutional interpretation, the question of whether the judiciary should play a primary role or only a secondary, Thayerian one in cases arising under the United States Constitution could be answered by the Constitution.² Listen, in that regard, to Gary Lawson, who wrote in his review of my book: "[W]hile Professor Perry is entirely correct that originalism and minimalism are logically distinct concepts, he does not explore the possibility that originalism can resolve the minimalism/nonminimalism debate. Does 'the judicial power of the United States,' as originally understood in 1789, carry with it an understanding of the judicial role that compels either minimalism or nonminimalism as a strategy for [the specification of indeterminate constitutional norms]?" Gary Lawson, *Recommended Reading: Michael J. Perry's "The Constitution in the Courts: Law or Politics?"* *Federalist Paper*, July 1994, at 9–10. Gary has raised a fair question and identified an important inquiry. Let me just say that I remain deeply skeptical about whether a constitutional consensus was ever achieved concerning the best answer, all things considered, to the minimalism/nonminimalism question.

113 Is there, with respect to state action, a need for a nationally uniform specification of any indeterminate norm that is part of the Constitution of the United States? I don't see it. Imagine this scenario: At Time 1, the legislature in State A declined to enact a law, because it believed that the law would be inconsistent with the best or optimal specification of a relevant but indeterminate norm in the United States Constitution; at Time 2, the legislature in State B enacted the law that the legislature in State A declined to enact, because, unlike the legislature in State A, the legislature in State B believed that the law would not be inconsistent with the best specification of the norm in question; at Time 3, the Supreme Court, on the ground that State B's specification was not unreasonable, declined to invalidate State B's law; at Time 4, the legislature in State A, after reconsidering the matter, reaffirmed its original view and so declined to enact the law. Why is the persistence of a disagreement between the two state legislatures, about the best specification of the norm in question, a problem – much less a problem the Court needs to resolve?

114 See *supra*, note 45.

115 John Hart Ely, *Another Such Victory: Constitution Theory and Practice in a World Where Courts Are No Different from Legislatures*, 77 Virginia L. Rev. 833, 834 n. 4 (1991).

116 *Id.*

117 *Id.*

118 *Id.* at 834 n. 4 (emphasis added).

119 *Id.*

- 120 Ely, *supra*, note 45 at 103.
- 121 See John T. Noonan, Jr., *The End of Free Exercise*, 42 DePaul L. Rev. 567 (1992).
- 122 Douglas Laycock, *The Benefits of the Establishment Clause*, 42 DePaul L. Rev. 373, 376 (1992).
- 123 319 U.S. 624 (1943).
- 124 319 U.S. at 666–7 (1943).
- 125 See *supra*, note 109.
- 126 See Jeremy Waldron, *A Right-Based Critique of Constitutional Rights*, 13 Oxford J. Legal Studies 18 (1993), and Jeremy Waldron, *Freeman's Defense of Judicial Review*, 13 Law & Philosophy 27 (1994). See also Jeremy Waldron, *Precommitment and Disagreement*, in Alexander, ed., *supra*, note 64.
- 127 Waldron, *A Right-Based Critique of Constitutional Rights*, *supra*, note 125 at 50–1.
- 128 Cf. Mark V. Tushnet, *Red, White, and Blue: A Critical Analysis of Constitutional Law* 4 (1988): "Judicial review is an institution designed to meet some difficulties that arise when one tries to develop political institutions forceful enough to accomplish values goals and yet not so powerful as to threaten the liberties of the citizenry."
- 129 Cf. Jeremy Waldron, Book Review, 90 J. Philosophy 149, 153 (1993) (reviewing Bruce Ackerman, *We the People: Foundations* [1991]): "Even if one concedes the superior authority of Ackerman's higher law making, one is left unsure why it should be the special function of the courts to interpret that legislation. Judicial review becomes politically most important in cases where citizens disagree among themselves about the best way of understanding some constitutional provision. . . . [W]e were all enthusiastically in favor of the free exercise of religion, [for example,] but now in the cold light of morning we have to work out how it is to fit in with public-education policy. Surely on Ackerman's account, this is a problem for normal politics – the phase of the democratic process that alone is capable of working out how various aspects of public policy fit together. . . . Once the people begin disagreeing among themselves about how to interpret their own past acts of higher law making, it is unclear why any particular interpretation of that heritage should be able to trump any other simply because it is endorsed by five judges out of nine. Ackerman asks, "Isn't it better for the Court to represent the *absent* People by forcing our elected politicians/statesmen to measure their statutory conclusions against the principles reached by those who have most successfully represented the People in the past? But that game is up once there is disagreement about the meaning of those principles: then all we have is our present legislation, measured against two or more contrary interpretations of our past."
- 130 My point is not that, with respect to every other indeterminate constitutional norm, the practice of judicial review should always be Thayerian. As I said, it is perilous to generalize. My point is only that, with respect to certain norms, the practice should always be non-Thayerian.
- 131 Bickel, *supra*, note 86 at 24.
- 132 *Id.*